



CHAPTER xxiii.

An Act to provide for the constitution and incorporation of a Board of Conservators for the preservation maintenance and improvement of the Upper Medway to acquire the undertaking of the Medway (Upper) Navigation Company and for other purposes.

A.D. 1911.

[2nd June 1911.]

WHEREAS by an Act of Parliament passed in the sixteenth and seventeenth years of the reign of His late Majesty King Charles the Second intituled "An Act for making the river of Medway navigable in the counties of Kent and Sussex" (hereinafter referred to as "the Act of 1664") certain persons therein named were authorised to make the said river and streams running thereinto navigable and to exercise other powers in relation thereto as in the said Act provided:

And whereas the powers of the Act of 1664 were not carried into execution and the persons thereby authorised to make the said river and streams navigable died and no proper successors were appointed in their stead as by the Act of 1664 was directed:

And whereas by an Act passed in the thirteenth year of King George the Second intituled "An Act to revive explain and amend an Act made in the sixteenth and seventeenth years of His late Majesty King Charles the Second intituled " 'An Act for making the river of Medway navigable in the " 'counties of Kent and Sussex' " (hereinafter referred to as "the Act of 1739") a company was formed for the better carrying on making and completing the navigation of the said river between Forest Row in the county of Sussex and Maidstone

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A.D. 1911. in the county of Kent (hereinafter called "the Upper Medway") under the name of "The Company of Proprietors of the Navigation of the River Medway" (hereinafter referred to as "the company") with perpetual succession and a common seal:

And whereas by the Medway (Upper) Navigation Act 1892 (hereinafter referred to as "the Act of 1892") the provisions of the Acts of 1664 and 1739 with respect to the constitution and management of the company were amended and the name of the company was changed to "Medway (Upper) Navigation Company" and further powers were conferred on the company:

And whereas the capital of the company was fifteen thousand eight hundred pounds divided into one thousand five hundred and eighty shares of ten pounds each of which one thousand five hundred and seventy shares have been issued and fully paid up and the company have borrowed or are indebted in various sums amounting approximately to eight thousand eight hundred pounds which or a large part whereof is secured upon mortgages or other charges on the company's undertaking and property or parts thereof:

And whereas the company have for many years been in financial difficulties and since the year one thousand eight hundred and ninety have paid no dividends:

And whereas proceedings were taken against the company in one thousand nine hundred and three at the instance of Lloyds' Bank and judgment was recovered for two thousand five hundred and eighty-five pounds thirteen shillings and sevenpence and costs:

And whereas in an action the short title of which is "Reeve v. The Medway Upper Navigation Company 1904 R. No. 1060" instituted by certain equitable mortgagees a receiver of the tolls was appointed:

And whereas proceedings were taken by Henry Charles King on behalf of himself and certain mortgagees and creditors of the company to decide and settle the priority of and security for their respective loans and an action for that purpose is now pending and a receiver has been appointed of the rents and profits of the lands and hereditaments belonging to the company and of certain annual payments in respect of the user and taking of water and gravel receivable by the company:

And whereas in consequence of the falling off of the receipts of the company and of their financial position the company have for some years past been unable to maintain the Upper Medway and the locks and lock gates in proper order and condition and the present state of the Upper Medway is such that it is in imminent danger of becoming derelict and the company have no funds available for the purpose of repairing the same and it is in the interest of the public and of the agricultural and trading population living in the district of the Upper Medway that the navigation thereof should be maintained and improved: A.D. 1911.

And whereas it is expedient that the undertaking property powers and obligations of the company should be acquired by and transferred to and vested in a body representative of the area and interests served by the Upper Medway and that immediate action should be taken to restore the navigation of the Upper Medway and to carry out such works as may be necessary for that purpose and to make provision for the preservation and future maintenance and improvement of the Upper Medway and the navigation thereof:

And whereas agreements have been entered into with the company and with the mortgagees and creditors of the company respectively for the sale and purchase of the undertaking of the company and for the discharge of the mortgage and other debts due and owing by the company and it is expedient that such agreements should be confirmed and carried into effect as in this Act provided:

And whereas it is expedient in order to effect the aforesaid objects and to carry into effect the provisions of this Act that Conservators (hereinafter referred to as "the Conservators") should be constituted as in this Act provided and should subject to the provisions of this Act be empowered to make and maintain the works in this Act described and to dredge cleanse and scour the Upper Medway and to preserve and improve the same and the navigation thereof and to levy and collect tolls rates and dues to borrow money and to exercise the powers of the company as in the said recited Acts and this Act provided:

And whereas it is expedient that—

The mayor aldermen and burgesses of the borough of Maidstone (hereinafter called "the corporation");

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The urban district council of Tonbridge;

The rural district council of Tonbridge;

The rural district council of Maidstone;

The rural district council of Maidstone;

should be authorised to guarantee as in this Act provided a part of the moneys to be borrowed by the Conservators or raised by means of debenture stock under the provisions of this Act and the payment of the interest accruing due thereon and that the corporation should be authorised to charge the borough fund and borough rate that the said urban district council should be authorised to charge the district fund and general district rate in their district and that the said rural district councils and each of them should be likewise authorised to charge the common fund and the rates of the several parishes (or contributory places) in their respective districts with the amount payable by them respectively under such guarantee as aforesaid:

And whereas it is expedient that the Board of Education should be empowered to authorise the governors of the foundation known as the Free Grammar School of Sir Andrew Judd Knight in the town of Tonbridge in the county of Kent (hereinafter called "the governors") to guarantee as in this Act provided the sum of not exceeding one thousand pounds:

And whereas estimates have been prepared of the amount required for the construction by the Conservators of the works by this Act authorised and such estimates amount to twenty-nine thousand eight hundred and twenty-one pounds:

And whereas the following bodies have agreed to contribute the following sums towards the expenses of such works (viz.) The wardens and assistants of Rochester Bridge in the county of Kent twenty thousand pounds and the Medway (Lower) Navigation Company one thousand pounds and it is expedient that such bodies should be authorised to contribute such sums and to apply their funds and revenues for the purposes of such contribution:

And whereas it is expedient that the Kent County Council (hereinafter called "the County Council") should be authorised to execute the works in this Act described:

And whereas estimates have been prepared by the County Council for the works to be executed by them including the

purchase of lands and such estimates amount to the sum of six A.D. 1911.
hundred and ninety pounds:

And whereas plans and sections of the works by this Act authorised showing the lines and levels thereof and plans and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes of or under the powers of this Act were duly deposited with the clerk of the peace for the county of Kent and are hereinafter respectively referred to as the deposited plans and sections and books of reference:

And whereas it is expedient that the Conservators should be authorised to close the Upper Medway or part or parts thereof to traffic during the construction of the works by this Act authorised and be indemnified in respect of any claim made against them by reason or in consequence of interference with traffic during the progress of the works authorised by this Act:

And whereas it is expedient to amend the Water Supply to Kent County Gaol and Lunatic Asylum Act 1862 as in this Act provided:

And whereas it is expedient that the County Council should be authorised to pay the costs charges and expenses of and incidental to applying for and obtaining this Act and of the works they are authorised to execute as aforesaid out of the county fund and revenues:

And whereas an absolute majority of the whole number of the County Council at a special meeting held on the sixteenth day of November one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Kent Messenger a newspaper published and circulating in the county (such notice being in addition to the ordinary notices required for summoning such meeting) resolved to apply the county fund and revenues to the payment of the costs and expenses of and in relation to the promotion of the Bill for this Act:

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole

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A.D. 1911. number of the County Council at a further special meeting held in pursuance of a similar notice on the fifteenth day of February one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited for all purposes as the Upper Medway Navigation and Conservancy Act 1911.

Incorporation of Acts. 2. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

The provisions of the Commissioners Clauses Act 1847 with respect to the following matters:—

Election of chairmen of meetings;

Manner of voting;

Quorum of commissioners;

Meetings of commissioners may be adjourned from time to time;

How notices of meetings of commissioners are to be given;

Informalities in appointment of commissioners not to invalidate proceedings;

The contracts to be entered into and deeds to be executed by the commissioners;

The liabilities and legal proceedings by or against the commissioners;

The appointment and accountability of officers of the commissioners;

The mortgages to be executed by the commissioners;

The accounts to be kept by the commissioners ;

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Giving notices and orders ; and

Access to the special Act ;

the clauses in that Act being construed as if the expression "the Conservators" had been inserted therein instead of the expression "the commissioners" and as if the expression "secretary" had been inserted therein instead of "clerk" and as if the list of officers contained in section 65 of that Act included engineers surveyors lock-keepers toll collectors water bailiffs collectors and inspectors :

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the following matters :—

The temporary occupation of lands near the railway during the construction thereof ;

The alteration of the position of water and gas pipes &c. ;

The recovery of damages not specially provided for and of penalties and the determination of any other matters referred to justices ;

and in the application of that Act to this Act the term "railway" shall mean the works authorised by this Act to be executed by the Conservators and the expression "centre of the railway" shall mean the limits of deviation of any such works and the limits of lands to be acquired under this Act and the clauses of that Act shall be construed as if the expression "the Conservators" had been inserted therein instead of the expression "the Company" :

The Public Health (Members and Officers) Act 1885 that Act being construed as if the expression "the Conservators" had been inserted therein instead of the expression "the Local Authority" :

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and in construing those Acts the Conservators shall be deemed the promoters of the undertaking for which such lands are required except that in its application to Part V. (Works by Kent County Council) the County Council shall be deemed the promoters of the undertaking.

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Division of
Act into
Parts.

3. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Incorporation &c. of conservancy board.
- Part III.—Acquisition and transfer of undertaking of the company to the board.
- Part IV.—Works lands &c.
- Part V.—Works by Kent County Council.
- Part VI.—Rates tolls and charges.
- Part VII.—Finance.
- Part VIII.—Guarantees.
- Part IX.—Miscellaneous.

Interpreta-
tion.

4. In this Act the following words terms and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And for the purposes of this Act the following expressions shall also have effect (that is to say):—

“The Conservators” means the Conservators forming the Upper Medway Navigation and Conservancy Board incorporated by this Act;

“The secretary” means the secretary of the Conservators;

“The corporation” means the mayor aldermen and burgesses of the borough of Maidstone;

“The borough” means the borough of Maidstone;

“The Tonbridge Council” means the Tonbridge Urban District Council;

“The rural councils” means the Maidstone Rural District Council the Tonbridge Rural District Council and the Malling Rural District Council respectively;

“The councils” means the Tonbridge Council and the rural councils;

“The County Council” means the county council of the administrative county of Kent;

“The county” means the county of Kent;

“The bridge wardens” means the wardens and assistants of Rochester Bridge in the county of Kent;

“The electors” means the persons entitled to vote in the election of Conservators under this Act; A.D. 1911.

“Register of electors” means the register of the names and addresses of the electors made in pursuance of this Act;

“The company” means the Medway (Upper) Navigation Company;

“The lower company” means the Medway (Lower) Navigation Company;

“The governors” means the governors of the foundation known as the Free Grammar School of Sir Andrew Judd Knight in the town of Tonbridge in the county of Kent as acting under and in accordance with the Scheme made under the Endowed Schools Acts 1869 1873 and 1874 in the matter of the said foundation and approved by Her late Majesty Queen Victoria in Council on the thirty-first July one thousand eight hundred and eighty;

“Daily penalty” means a penalty for each day on which an offence is continued after conviction therefor;

“Vessel” means any ship lighter keel sloop barge or other like craft for carrying goods tug launch or any other vessel however propelled or moved houseboat pleasure or other boat randan wherry skiff dinghy punt canoe yacht raft float of timber or craft however navigated;

“Pleasure boat” means any ship launch houseboat randan wherry skiff dinghy punt canoe or yacht however navigated not being used solely as a tug or for the carriage of goods;

“Steam launch” means any vessel propelled by steam electricity or other mechanical power not being used solely as a tug or for the carriage of goods;

“Goods” means all wares merchandise and articles as set forth in the schedule to the Canal Rates Tolls and Charges No. 2 (Bridgewater &c. Canals) Order Confirmation Act 1894;

“Master” when used in relation to any vessel means any person whether the owner master or other person lawfully or wrongfully having or taking the command charge or management of the vessel for the time being;

A.D. 1911. "Tolls" means the tolls authorised by this Act to be taken by the Conservators for vessels passing through by or over any lock or roller pass or for the use of piers or landing places;

"The Order of 1894" means the Canal Rates Tolls and Charges No. 2 (Bridgewater &c. Canals) Order 1894 scheduled to and confirmed by the Canal Rates Tolls and Charges No. 2 (Bridgewater &c. Canals) Order Confirmation Act 1894;

"Rates tolls and charges" means the maximum rates tolls and charges set forth in the Order of 1894;

"The company's agreement" means the agreement between the company and Osmond Elim d'Avigdor Goldsmid dated the twenty-ninth day of March one thousand nine hundred and eleven and set forth in the Second Schedule to this Act;

"The mortgagees' agreement" means the agreement between Henry Charles King of the first part William Alloway Perkins of the second part James Percy Knight and Rowland John Jefferis of the third part John Abrey of the fourth part Henry Letts of the fifth part and Osmond Elim d'Avigdor Goldsmid of the sixth part dated the thirtieth day of March one thousand nine hundred and eleven and set forth in the Third Schedule to this Act;

"The creditors' agreement" means the agreement between Lloyds' Bank Limited Arthur Thomas Beeching Harold Anthony Beeching Horace Arthur Beeching and Walter Charles Beeching of the one part and Osmond Elim d'Avigdor Goldsmid of the other part dated the fourteenth day of March one thousand nine hundred and eleven and set forth in the Fourth Schedule to this Act;

"The three agreements" means the Company's agreement the mortgagees' agreement and the creditors' agreement;

"The date of transfer" means the date on which the whole of the purchase money and considerations payable by the Conservators under the three agreements shall have been paid such date to be fixed by the Conservators at their first meeting and to be not later than two months after the passing of this Act;

“The receivers” means any receiver or receivers appointed in the proceedings recited in the preamble to this Act; A.D. 1911.

“The undertaking of the company” means the undertaking as existing immediately before the passing of this Act and includes all estate right title and interest in and to the bed and soil and banks of the Upper Medway and in and to all encroachments and embankments and enclosures thereupon and therefrom and all and singular the locks docks wharves canals buildings approaches erections structures hereditaments and premises and all lands including superfluous lands (if any) not already sold and water and other rents easements and conveniences machinery stores plans drawings books deeds agreements and papers real and personal property estate right title and effects and other rights powers and privileges of what nature and kind soever belonging to or vested in or held used enjoyed or exerciseable by the company;

“The Upper Medway” means that part of the River Medway and all canals and tributaries thereof between an imaginary line drawn due east and west across the said river from a point in the buttress projecting from the western wall of the College Garden in the borough of Maidstone 56 feet or thereabouts measured in a southerly direction from the northern corner of the said wall and being 892 feet or thereabouts south of Maidstone Bridge and the bridge over the Upper Medway at Forest Row in the county of Sussex.

5. This Act shall apply to the Upper Medway.

Application
of Act.

PART II.

INCORPORATION &C. OF CONSERVANCY BOARD.

6. There shall be sixteen Conservators appointed and elected as by this Act provided for carrying this Act into execution and such Conservators shall be a body corporate by the name of “The Upper Medway Navigation and Conservancy Board” and by that name shall have perpetual succession and a common seal and shall have power to take purchase hold and dispose of lands tenements and hereditaments goods chattels and other property for the purposes of this Act without licence in mortmain.

Incorporation of Conservators.

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Constitution
of Con-
servators.

7. There shall be fourteen appointed Conservators (hereinafter called "appointed Conservators") appointed as follows:—

Three Conservators by the bridge wardens;

Three Conservators by the Tonbridge Council;

Two Conservators by the County Council;

One Conservator by the corporation;

One Conservator by the Tonbridge Rural District Council;

One Conservator by the Malling Rural District Council;

One Conservator by the Maidstone Rural District Council;

One Conservator by the governors;

One Conservator by the lower company.

There shall be two elected Conservators (hereinafter called "elected Conservators") elected by the electors in accordance with the provisions of this Act.

First ap-
pointed Con-
servators.

8. The following fourteen persons shall be the first appointed Conservators (that is to say) George Marsham Herbert Monckton and Samuel Lee Smith as representing the bridge wardens Arthur James Isard Isaac Race and George Frank Stacey as representing the Tonbridge Council Osmond Elim d'Avigdor Goldsmid and Augustus Leney as representing the County Council William Day as representing the corporation Thomas Adam Wimshurst as representing the Tonbridge Rural District Council Jasper Francis Wheeler as representing the Malling Rural District Council Frank Reeves as representing the Maidstone Rural District Council Francis Osborne Streeten as representing the governors and John Arkcoll as representing the lower company and the said appointed Conservators shall retire from office as in this Act provided.

Retirement
of appointed
Conser-
vators.

9. On the first day in the month of July one thousand nine hundred and thirteen and on the same date in each succeeding year five of the appointed Conservators shall retire from office except that in the year one thousand nine hundred and fifteen and every subsequent third year four appointed Conservators shall retire from office and the vacancies occasioned by every such retirement shall be supplied by the appointment of appointed Conservators in their stead as by this Act is provided The Conservators shall at their first meeting resolve which of the

appointed Conservators are to retire each year in accordance with the provisions of this section and a certified copy of such resolution shall be sent by the Conservators to each council company or body appointing Conservators under this Act. A.D. 1911.

10.—(1) At the first ordinary meeting of the County Council after the first day of May one thousand nine hundred and thirteen and of the corporation and the councils after the first day of June one thousand nine hundred and thirteen and thereafter at the first ordinary meeting of the County Council in the month of May and of the corporation and the councils in the month of June in every subsequent year the County Council the corporation and the councils shall appoint the appointed Conservators if any to be appointed by them respectively in that year. Appoint-
ment of ap-
pointed Con-
servators.

(2) The bridge wardens and the lower company and the governors respectively at their meeting immediately preceding the first day of July one thousand nine hundred and thirteen and at the like meeting in each succeeding year shall appoint the Conservators to be appointed by them respectively.

(3) Each of the Conservators appointed under this section shall continue in office for three years if he shall so long live and continue qualified and every retiring appointed Conservator shall if qualified be eligible for re-appointment.

(4) The clerk of every council the bridge clerk of the bridge wardens the secretary of the lower company and the clerk to the governors making such appointment as aforesaid shall within seven days after such appointment deliver to the secretary to the Conservators a statement of the name and place of residence of the person so appointed a member of the Conservators and in case of any default or neglect in filling up any vacancy within the time aforesaid the Conservators may at their next or any subsequent meeting elect such person as they shall think proper to supply the vacancy which shall not then have been filled up or to supply the place of any person who may not have been appointed or whose appointment shall not have been made known to the Conservators.

11. The following two persons shall be the first elected Conservators under this Act (that is to say) James Donaldson and George Arnold and the said elected Conservators shall hold office until the first day in the month of July one thousand First elected
Conser-
vators.

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A.D. 1911. nine hundred and thirteen notwithstanding anything contained in Part I. of the First Schedule to this Act.

Provisions as to election of elected Conservators.

12. Subject to the provisions of this Act the provisions contained in the First Schedule to this Act shall have effect with respect to the election of the elected Conservators and other the matters connected therewith as in the said schedule contained.

Vacancies in office of Conservators to be filled up.

13. Any vacancy in the office of appointed Conservators or elected Conservators occasioned by death resignation removal disqualification or any other cause whatever shall be filled up with all convenient speed by the appointment or election as by this Act provided of a Conservator by the persons or body by whom or which the Conservator whose vacancy is to be filled up may have been originally appointed or elected and shall hold office as long only as the Conservator in whose stead he is nominated elected or appointed would have been entitled to continue in office.

No person to be a Conservator on behalf of more than one body.

14. No person being appointed a Conservator by any company corporation or council under this Act shall so long as he continues a Conservator appointed by any such company corporation or council be qualified to be also a Conservator appointed by any other company corporation or council and any such subsequent appointment shall be void and if the same person shall be appointed a Conservator by more than one such company corporation or council for the same period of office he shall choose under which appointment he will serve and the other appointment or appointments shall be deemed void.

Appointed Conservator to cease to be such when no longer a member of council &c.

15. When any appointed Conservator ceases to be a member of the County Council the corporation the councils or of the bridge wardens by whom he is appointed he shall cease to be an appointed Conservator and a vacancy in the office of appointed Conservators shall be thereby created Provided always that the provisions of this section shall not apply to the Conservators named in the section of this Act the marginal note of which is "First appointed Conservators" who are to remain in office until the first day of July one thousand nine hundred and thirteen.

No bankrupt to be a Conservator.

16. No bankrupt and no person who has compounded with his creditors or submitted his affairs to liquidation shall be capable of being or continuing a Conservator.

17. It shall be lawful for the Conservators from time to time to provide and maintain a fit and convenient public office within the county for holding the meetings of the Conservators and transacting the business of the conservancy and for the use of their officers and for transacting such other business as the Conservators shall from time to time think fit to allow or direct to be transacted therein and for such purpose to purchase or hire any messuage or tenement or land which shall by the Conservators be considered necessary of and from any person who shall be willing to sell or let the same and to cause any new erection or building to be made upon any land or ground which shall be purchased or hired under the provisions of this Act.

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 A fit office
 to be pro-
 vided for
 meetings of
 Conser-
 vators.

18. The Conservators shall meet and assemble at the offices of the County Council at the Sessions House Maidstone or at some other convenient place within one month after the passing of this Act and the Conservators may from time to time adjourn such meeting to such day as they think fit and hold such adjourned meeting at the said place or at any other convenient place and at such hour as may from time to time be appointed by them or by the majority of the votes of the Conservators present at such meeting Provided that at such meeting the Conservators shall by resolution fix the date of transfer such date being not later than two months after the passing of this Act.

First meet-
 ing of Con-
 servators.

19. A conservancy meeting shall be held on the first day of June in the year one thousand nine hundred and twelve and in every subsequent year on the same date or on such other day as may from time to time be appointed by the Conservators in that behalf and such meeting shall be called the annual conservancy meeting.

Annual
 meeting of
 Conser-
 vators.

20. The Conservators shall hold such periodical meetings as shall from time to time be appointed by them for any of the purposes of this Act and shall from time to time fix the days and times for holding such periodical meetings a list of such days and times of meetings being duly affixed in some conspicuous part of the usual place of meeting of the Conservators and upon any such day and time being fixed the Conservators for the time being are required to attend such periodical meetings.

Periodical
 meetings to
 be held.

A.D. 1911.

No extra-ordinary business at periodical meetings unless notice be given.

21. No new rules or regulations shall be adopted nor any extraordinary business be transacted at the periodical meetings unless due notice thereof has been given at a prior meeting and the subject of such business been notified to each Conservator by means of written or printed notices delivered or left in the same manner as herein required for special meetings.

Special meeting of Conservators.

22. It shall be lawful for the Conservators to hold special meetings and any three or more of the Conservators may require a special meeting to be held but no such meeting shall be held unless two days' notice thereof at the least shall be given except in cases of emergency.

How notices of meetings of Conservators to be given.

23. All notices of any adjourned meeting or special meeting to be held under the authority of this Act shall be in writing or print or partly in writing and partly in print and shall be delivered and sent by the secretary by post or otherwise to the usual place of abode or place of business of each of the Conservators two days at the least previous to such meeting except as aforesaid and every notice shall specify the time and place of meeting and in case of a special meeting shall specify the objects thereof and no business shall be transacted at any special meeting except such as is stated in the notice thereof.

Conservators to provide daily attendance at an office.

24. The secretary or some person duly authorised by the Conservators in that behalf shall attend at their office daily (Sundays Christmas Day and Good Friday and days appointed for any general fast public holiday or thanksgiving alone excepted) for the purpose of receiving notices and transacting the ordinary business of the conservancy and due notices of the situation of the office of the Conservators and of the hours during which attendance is given there shall be published by the Conservators in such manner as they shall think proper so that the same may be fully and generally known.

Committees may be appointed.

25. It shall be lawful for the Conservators present at any conservancy meeting to appoint a committee or committees for any purposes which in the discretion of the Conservators would be better regulated and managed by means of such committee and at any meeting to continue alter or discontinue such committee Provided always that the acts of every such committee shall be submitted to the general body of Conservators for their approval.

26. Every committee so appointed may meet from time to time and may adjourn from place to place as they may think proper for carrying into effect the purposes of their appointment but no business shall be transacted at any meeting of the committee unless three members of the committee are present and at all meetings of the committee one of the members present shall be appointed chairman and all questions at any meeting of the committee shall be determined by the votes of the members present and in case of an equal division of votes the chairman shall have a second or casting vote in addition to his vote as a member of the committee.

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Mode of proceeding of committees.

27. No resolution or other act at any conservancy meeting shall be revoked or altered at any subsequent meeting unless such subsequent meeting be called expressly for such alteration or revocation by notice given by the secretary fourteen days at least previous to the holding thereof nor unless such revocation or alteration be determined upon by a majority consisting of two thirds of the Conservators present and voting at such subsequent meeting.

No resolution of Conservators to be revoked at a subsequent meeting unless under certain circumstances.

28. No act or proceeding of any of the Conservators acting under the authority of this Act shall be invalidated or be illegal in consequence only of their being any vacancy in the number of Conservators at the time of doing or executing such act or proceeding.

Acts of Conservators not to be invalidated by reason of vacancies.

29. The Conservators shall cause entries of the names of all the Conservators who shall attend any conservancy meeting and notes minutes or copies as the case may require of all appointments made or contracts entered into by or on behalf of the Conservators and of the orders and proceedings of all conservancy meetings and of all meetings of committees to be duly entered in books to be from time to time provided for that purpose which shall be kept under the superintendence of the Conservators and every such entry shall be signed by the person who was in the chair at any such meeting and such entry so signed shall be received as evidence in all courts and before all judges justices and others without proof of such respective meetings having been duly convened or held or of the persons making such orders being Conservators or members of such committee respectively or of the signature of the chairman or of the fact of his having been chairman all of which last-mentioned

Proceedings to be entered in a book and to be evidence.

A.D. 1911. matters shall be presumed to be correct until the contrary be proved and all such books shall at all reasonable times be open to the inspection of the Conservators.

Payment of travelling expenses of Conservators.

30. The travelling expenses incurred by any Conservator in attending any annual conservancy or other meeting of the Conservators may be defrayed by the Conservators.

PART III.

ACQUISITION AND TRANSFER OF UNDERTAKING OF THE COMPANY TO THE BOARD.

Confirmation of agreements.

31. The company's agreement the mortgagees' agreement and the creditors' agreement respectively whereof copies are set forth in the Second Third and Fourth Schedules respectively to this Act are hereby made binding upon and as between the several parties thereto respectively (other than the said Osmond Elim d'Avigdor Goldsmid) on the one hand and the Conservators on the other hand in like manner and to the same extent as if the Conservators had been incorporated before the dates of the said agreements respectively and had been parties thereto respectively in the place of the said Osmond Elim d'Avigdor Goldsmid :

Provided always that unless and until the said agreements shall be carried into effect and all sums payable thereunder shall have been duly paid and satisfied in accordance with the terms and provisions thereof nothing in this Act contained shall in any way alter prejudice or affect the rights and remedies of the mortgagees and creditors of the company parties to the said agreements respectively under the proceedings and action referred to in the Preamble to this Act or otherwise but the said rights and remedies shall in case of failure by the Conservators to carry out and pay the sums payable under the said agreements or any or either of them within the periods therein respectively limited remain of as full force and effect and may be proceeded upon and enforced against the undertaking and property of the company or any part thereof to the same extent and in the same manner as if this Act had not passed :

Provided also that notwithstanding anything in this Act or in the mortgagees' agreement contained if there be or is likely

to be any delay after the passing of this Act owing to the taxation of the costs to be paid by the Conservators under the mortgagees' agreement having to be taxed or otherwise ascertained the Conservators may pay to the mortgagees the amount of principal and interest mentioned in the said agreement and deposit in the joint names of some person to be nominated by the Conservators and of some person to be nominated by the parties of the first second third fourth and fifth parts to the said agreement (hereinafter in this section referred to as "the mortgagees") such a sum as shall be sufficient to cover the said costs and thereupon the mortgagees shall transfer to the Conservators or as they may direct their respective mortgages and the whole of their respective interests thereunder including the right to receive out of court any moneys in court or in the hands of the receivers and all other the interest of the mortgagees intended to be assigned under the provisions of the said agreement and the amount deposited in the said joint names or so much thereof as is necessary for the purpose shall be transferred to the mortgagees respectively so soon as the amount of the said costs is ascertained and the balance (if any) shall be transferred to the Conservators.

A.D. 1911.

32.—(1) In accordance with and subject to the terms and conditions of the three agreements the undertaking of the company and the rights powers privileges and authorities to be in accordance with this Act exercised and enjoyed by the Conservators with respect to the same shall on the date of transfer and upon the payment and satisfaction of the purchase-moneys and considerations under and in accordance with the three agreements be by virtue of and subject to the provisions of this Act transferred to and vested in the Conservators without any further conveyance and all agreements deeds conveyances plans or documents of title relating to any lands forming part of the undertaking and the common seal of the company and all plans and drawings of the Upper Medway and works thereon and in connection therewith and all deeds books agreements plans and papers in connection with the working of the undertaking shall be handed over to the Conservators on the date of transfer.

Transfer to
 Conservators
 of under-
 taking.

(2) Provided always that the registers of shareholders and transfer books of the company and any books which may be required for the purpose of making up the accounts of the

A.D. 1911. — company and for and in connection with the winding up and dissolution of the company may be retained by them until such winding up and dissolution is completed when they shall be handed over to the Conservators.

(3) The production of a King's Printers' copy of this Act duly stamped together with a receipt for the purchase-money to be paid under the company's agreement purporting to be signed by three directors of the company or by the cashier of the Bank of England and also a receipt or receipts for the moneys payable under the mortgagees' agreement and the creditors' agreement shall (unless it be proved that the said purchase or other moneys have not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Conservators of the undertaking of the company.

Effect of
transfer.

33. Subject to the provisions of this Act as from the date of transfer the Conservators may and shall exercise all the rights powers authorities and privileges of the company and shall except as in this Act otherwise provided be subject to all duties obligations and liabilities of the company under the Acts of the company in like manner *mutatis mutandis* as if they were the company and the estate right title and interest of the company in and to the bed and soil and the banks of the Upper Medway and in and to all encroachments and embankments and enclosures thereupon or therefrom shall be and remain vested in the Conservators.

Receipt for
purchase-
money.

34. The receipt in writing of three directors of the company for the purchase-money or any part thereof or for any other sum of money to be paid under the company's agreement to the company by the Conservators shall effectually discharge the Conservators from the sum which in such receipt shall be acknowledged to have been received and from being answerable or accountable for the loss misapplication or non-application thereof Provided that if from any cause the Conservators are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened "In the matter of the Upper Medway Conservancy Act 1911" and a receipt shall be given to the Conservators by the cashier of the said bank for the money which shall have the same effect as the receipt of such three directors,

35. The company or the receivers shall up to the date of transfer bear and pay all outgoings and liabilities of every kind properly chargeable to revenue and receive and retain all rates tolls and charges and other payments due to the company and be entitled to all receipts from the undertaking and any balance in the hands of the receivers shall on the date of transfer be handed over to the Conservators.

A.D. 1911.
Company or receivers to pay outgoings and be entitled to receipts until date of transfer.

36. Until the date of transfer the undertaking of the company shall be maintained and carried on by the company or the receiver as heretofore in the ordinary course of business but the company or receiver shall not without the previous consent of the Conservators under the hand of their secretary make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works and navigation and the proper conduct of the undertaking and any expenditure incurred by the company or the receiver on capital account prior to the transfer with such consent of the Conservators as aforesaid shall upon the transfer be repaid to the company or the receiver by the Conservators.

Maintenance until transfer.

37. Subject to the provisions of this Act all debentures mortgages obligations debts and liabilities of the company existing at the date of transfer (except the mortgages and liabilities referred to in the schedules to the three agreements) shall be paid and satisfied by the company out of the consideration to be paid by the Conservators to the company under the company's agreement in accordance with the provisions of this Act.

Company's debts to be paid by company.

38. If at the date of transfer any action or proceeding or any cause of action or proceeding is pending or existing the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by or against or in favour of the Conservators as and when it might have been continued prosecuted and enforced by or against or in favour of the company if this Act had not been passed.

Pending actions &c.

39. Subject to the provisions of this Act and of the three agreements all agreements contracts conveyances deeds and other instruments affecting the company shall except as in this Act otherwise provided after the transfer be as binding and of as full force and effect against or in favour of the Conservators

Contracts to be binding on Conservators.

A.D. 1911. and may be enforced as fully and effectually as if instead of the company the Conservators had been a party thereto.

Books &c. to remain evidence.

40. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same and the like matter for or against the Conservators.

Purposes for which Company to continue incorporated Winding up of Company.

41.—(1) From and after the date of transfer the company shall subsist only for the purpose of distributing the purchase money or consideration paid by the Conservators to the company under the company's agreement and for winding up the affairs of the company and carrying into effect the purposes of this Act so far as they relate to the company and the directors of the company who are in office at the date of transfer and the survivors or survivor of them shall continue without re-election to hold the office of directors of the company and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section. If the number of directors of the company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the company to fill the vacancy or vacancies so caused.

(2) Forthwith after the date of transfer the directors of the company shall proceed to wind up the affairs of the company and distribute the said purchase-money or consideration to the shareholders of the company and to the unsecured creditors of the company referred to in the company's agreement to the amount and in manner hereinafter mentioned and such shareholders and unsecured creditors respectively shall receive the same in full satisfaction and discharge of all claims against the company or the undertaking (that is to say):—

To the shareholders of the company the sum of two shillings in respect of every ten pound share;

To the unsecured creditors or their executors administrators and assigns the sum of seventy-five pounds to be distributed to such unsecured creditors in proportion to the amount due to them respectively.

(3) For the purpose of such distribution to the shareholders A.D. 1911.
of the company the several persons whose names shall appear
in the books of the company at the date of transfer to be the
proprietors of shares therein shall unless the contrary be proved
to the satisfaction of the directors be considered to be shareholders
of the company and the receipt in writing of such persons or
of their executors administrators or assigns or of the committee
or guardian of the estate of any of such persons who shall be
an idiot lunatic or minor shall be an effectual discharge to the
company and the directors thereof for the money therein expressed
to be received and shall exonerate them from any obligation
affecting the share or interest in respect whereof that money
is paid.

(4) Where the directors of the company are for three months
after the date of transfer unable after reasonable inquiry to
ascertain the person to whom any part of the said purchase
money is payable or where any part thereof is payable to a
person by or on behalf of whom an effectual receipt cannot be
given or on account of any other reasonable cause the directors
may pay the same into the Supreme Court of Judicature in
England or if not exceeding ten pounds into the county court
of Kent holden at Maidstone under any Act for the time being
in force for the relief of trustees and every such payment into
court shall effectually discharge the company and directors from
all further liability with respect to such moneys.

42. The Medway (Upper) Navigation Acts 1664 to 1892 Repeal of
Acts of
Company.
described in the first part of the Fifth Schedule to this Act shall
as from the date of transfer be repealed except so far as may be
necessary for giving effect to the provisions of this Act for winding
up the company and distributing their assets except the sections
as set forth in the second part of the Fifth Schedule to this Act
all of which provisions are exempted from repeal and as far as
they respectively are in force at the date of transfer shall remain
in force as if this Act had not been passed and the Conservators
were therein referred to instead of the company.

PART IV.

WORKS LANDS &c.

43. Subject to the provisions of this Act the Conservators Power to
make works.
may at any time after the date of transfer make and maintain

A.D. 1911. in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for that purpose. The works hereinbefore referred to are wholly in the county of Kent and are as follows (that is to say):—

Work No. 1 A cut (Cut No. 1) situate partly in the parish of Yalding in the rural district of Maidstone and partly in the parish of Nettlestead in the rural district of Maidstone commencing at a point in the Upper Medway 695 yards or thereabouts measured in a northerly direction from the tail gates of Hampstead Lock and terminating at a point in the Upper Medway 618 yards or thereabouts measured in a northerly direction from the tail gates of the said Hampstead Lock;

Work No. 2 A widening (Widening No. 1) of the Upper Medway situate wholly in the said parish of Yalding commencing at a point in the Upper Medway 87 yards or thereabouts measured in a south-easterly direction from the head gates of the said Hampstead Lock and terminating at a point in the Upper Medway coincident with the down-stream face of the footbridge leading to the Anchor Inn;

Work No. 3 A widening (Widening No. 2) of the Upper Medway situate wholly in the parish of East Peckham in the rural district of Malling commencing at a point in the Upper Medway 7 yards or thereabouts measured in a north-easterly direction from the tail gates of Brandbridges Lock and terminating at a point in the Upper Medway 7 yards or thereabouts measured in a southerly direction from the head gates of the said Brandbridges Lock;

Work No. 4 A widening (Widening No. 3) of the Upper Medway situate wholly in the said parish of East Peckham commencing at a point in the Upper Medway 7 yards or thereabouts measured in an easterly direction from the tail gates of New Lock and terminating at a point in the Upper Medway 7 yards or thereabouts measured in a westerly direction from the head gates of the said New Lock;

Work No. 5 A widening (Widening No. 4) of the Upper Medway situate wholly in the parish of Tonbridge Rural in the rural district of Tonbridge commencing at a point in the Upper Medway 7 yards or thereabouts measured in an easterly direction from the tail gates of Child's Lock and terminating at a point in the Upper Medway 7 yards or thereabouts measured in a westerly direction from the head gates of the said Child's Lock; A.D. 1911.

and may in connection with—

- (A) Work No. 3 (Widening No. 2) take down and remove the lock known as Brandbridges Lock and all works and conveniences connected therewith;
- (B) Work No. 4 (Widening No. 3) take down and remove the lock known as New Lock and all works and conveniences connected therewith;
- (C) Work No. 5 (Widening No. 4) take down and remove the lock known as Child's Lock and all works and conveniences connected therewith:

And the Conservators may upon the said lands in connection with the aforesaid works construct and maintain all proper embankments dams locks sluices bye-washes waste-weirs outfalls discharge pipes bridges roads paths approaches gates gauges culverts cuts drains mains pipes houses buildings engines and conveniences connected with or ancillary to the said works or any of them or necessary for inspecting maintaining enlarging repairing cleansing managing working and using the same.

44. In constructing the works by this Part of this Act authorised or any of them the Conservators may deviate from the lines thereof shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding three feet upwards or downwards. Power to deviate in construction of works under Part IV, of Act.

45. Subject to the provisions of this Act the Conservators may for the purpose of the construction of any works authorised by this Act or of executing any work under the provisions of subsection (A) of the section of this Act of which the marginal note is "Power to reconstruct &c. locks &c." temporarily divert the waters of the Upper Medway and close the Upper Medway or any part or parts thereof to navigation for such period as Power to divert waters of and to close Upper Medway.

A.D. 1911. — may be reasonably necessary Provided always that the Conservators shall give at least fourteen days' notice of their intention to so close any portion of the Upper Medway in some newspaper or newspapers published in the county and shall at the same time give notice in writing to the lower company with full particulars of their proposals If in the opinion of the lower company such proposals may injuriously affect or interfere with the undertaking of the lower company or the navigation thereof or the traffic thereon the Conservators on being so informed shall forthwith modify such proposals to meet the reasonable requirements of the lower company.

The reasonableness of any requirement made by the lower company in pursuance of this section in case of difference shall be referred to and determined by an engineer to be agreed on between the Conservators and the lower company or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party the costs of such reference to be borne and paid by the Conservators unless the said engineer shall otherwise determine.

Power to re-construct &c. locks &c.

46. After the date of transfer and subject to the provisions of this Act and upon lands belonging to the Conservators or acquired by them under the provisions of this Act or upon the bed of the Upper Medway the Conservators may—

(A) Widen deepen lengthen enlarge strengthen or take down and remove and reconstruct the existing locks and pounds hereinafter specified together with all or any dams weirs turnpikes wharves bucks sluices winches spikes floodgates engines toll-houses watch-houses and other conveniences in connection therewith (that is to say) :—

Name of Lock.	Parishes &c. in which situate.
Farleigh - -	East Farleigh Maidstone and East Barming.
Teston - -	Teston and West Farleigh.
Hampstead - -	Yalding.
Stoneham - -	Yalding and East Peckham.
Sluice Weir - -	East Peckham.
Oak Weir - -	Hadlow.
East - -	Hadlow.
Porter's - -	Hadlow.
Eldridge's - -	Hadlow and Tonbridge Rural.
Town - -	Tonbridge Urban.

and may in connection therewith construct and main- A.D. 1911.
 tain all proper embankments dams locks sluices
 bye-washes waste-weirs outfalls discharge pipes bridges
 roads paths approaches gates gauges culverts cuts
 drains mains pipes houses buildings engines and con-
 veniences connected with or ancillary to the said
 locks and other works or any of them or necessary for
 inspecting maintaining enlarging repairing cleansing
 managing working and using the same;

- (B) From time to time improve the navigation of the Upper General
 Medway whether for profit or pleasure and may powers as to
 from time to time for the purposes of such works for
 improvement make erect maintain alter strengthen navigation.
 extend discontinue remake and re-erect all such
 towpaths banks roads ferries and ways for the towing
 of vessels (with horses or otherwise) and may for the
 like purposes maintain enlarge renew reconstruct alter
 strengthen lengthen widen or replace the said exist-
 ing locks and pounds and all dams weirs turnpikes
 wharves storehouses cranes bucks sluices winches spikes
 floodgates engines toll-houses watch-houses and other
 works and conveniences as may be necessary and
 proper for the purposes of such improvement Pro-
 vided always that nothing in this section contained
 shall authorise the Conservators to alter or interfere
 with any of the bridges over the Upper Medway;

and may supply all such locks and pounds with water and for
 the purposes of making erecting maintaining enlarging renewing
 reconstructing altering strengthening lengthening widening
 replacing or removing any such locks or pounds or other works
 in connection therewith in upon or from such lands or bed as
 aforesaid bore dig cut trench sough get remove take and carry
 away earth clay stone gravel sand soil rubbish trees and roots.

47. No works or operations of any kind which in the For protec-
 opinion of the Admiralty may restrict the free flow and ebb of tion of
 the tide or the stream of the river or may otherwise prejudicially Admiralty.
 affect the periodical scouring provided for by section 70 of the
 Act of 5 George IV. cap. cxlviii. intituled "An Act for the
 " more effectually improving the Navigation of the River

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Conservancy Act, 1911.*

A.D. 1911. “ Medway from Maidstone to Halling in the County of Kent
“ and to alter and enlarge the Powers of an Act of the Forty-
“ second year of His late Majesty for improving the Navigation
“ of the said river ” shall be constructed carried on or permitted
by the Conservators in the Upper Medway below Farleigh
Lock without the consent in writing of the Admiralty which
consent may be given under the hand of their secretary and
subject to such terms and conditions as they may think fit to
impose.

For pro-
tection of
South East-
ern Railway
Company
and South
Eastern and
Chatham
Railway
Companies’
Managing
Committee.

48. For the protection of the South Eastern Railway Com-
pany and the South Eastern and Chatham Railway Companies’
Managing Committee (hereinafter referred to as “the railway
company”) the following provisions shall unless otherwise
agreed between the Conservators and the railway company
apply and have effect (that is to say):—

(1) Notwithstanding anything in this Act contained the
Conservators shall not construct any of the works by
this Act authorised which will or may involve any
alteration of the bed of the River Medway at the
points where the railway of the railway company
passes over the said river or within a distance of
twenty yards on either side of such points without
the previous consent in writing of the railway
company under their common seal:

(2) The Conservators shall not at any time interfere with
the drainage facilities into the said river now enjoyed
by the railway company in connection with their
railway and the adjoining land and in the event of
any of the existing outlets being cut off by reason
of the construction of any of the works by this Act
authorised the Conservators shall to the reasonable
satisfaction of the engineer of the railway company
make other and proper provision for the due and
efficient drainage of the said railway and land:

(3) Any difference arising under the preceding provisions
of this section between the Conservators and the
railway company shall be referred to and determined
by an engineer to be agreed upon or failing agreement
to be appointed on the application of either party by
the President of the Institution of Civil Engineers:

- (4) Notwithstanding anything in this Act contained or A.D. 1911.
shown upon the deposited plans the Conservators
shall not enter upon take use or interfere with any
land or property of the railway company without
their previous consent in writing under their common
seal.

49. For the protection of Messieurs Curtis's & Harvey For pro-
tection of
Messrs.
Curtis's &
Harvey
Limited.
Limited or other the owners for the time being of the Tonbridge
Powder Mills (hereinafter in this section referred to as "the
owners") the following provisions shall apply and have effect
(that is to say):—

Nothing in this Act shall authorise the Conservators to
divert the flow of water maintained by the weir known
as the Ramhurst Weir from or diminish such flow to the
creek serving the said powder mills the property of the
owners or execute any work which will prevent the flow
from the said Tonbridge Powder Mills through the sluice
on the east side of the said powder mills.

50. For the protection of Charles Remington Mills his heirs For pro-
tection of
Charles
Remington
Mills.
and assigns or other the owner or owners of the estate known
as the Postern Estate in the county of Kent (in this section
called "the owner") the following provisions shall unless the
Conservators and the owner otherwise agree in writing apply and
have effect (that is to say):—

- (1) The Conservators shall construct and maintain a weir
west of Eldridge's Lock on the south side of the
River Medway at a point to be agreed between the
owner and the Conservators or settled by arbitration
for the purpose of taking off the flood waters and in
connection with such weir shall provide and maintain
a suitable channel from the weir to a point on the
river below Eldridge's Lock such weir to be of such
a height as will correspond with the intended water
level at Eldridge's Lock as shown on the deposited
plans and to be not less than twenty feet in length
and to be in substitution for the enlargement of the
weir in Eldridge's Pen shown on the enlarged plan
No. 14 deposited for the purposes of this Act The
land required for and in connection with the con-
struction of the said weir and channel as shown on

A.D. 1911.

the plan hereinafter in this section referred to shall be provided for the Conservators by the owner who shall grant the same to the Conservators free of expense to them:

- (2) The Conservators shall reconstruct and maintain Cannon Bridge carrying the occupation road over the River Medway so as to be of a width of twenty feet between the parapets of such height not exceeding twelve feet above the intended water level and of such span as the Conservators may consider necessary such new bridge to be constructed of concrete and steel as nearly as may be on the site of the existing bridge and the parapets of the bridge to be not less than four feet high above the surface of the roadway and the Conservators shall on land of the owner to be provided by him for the purpose construct and lay out metal and properly fence off a new occupation road of fifteen feet in width between the points shown on and in accordance with the plan signed by H. P. Maybury on behalf of the Conservators and by R. S. Ellis on behalf of the owner. The Conservators will make such arrangements during the construction of the new or reconstructed bridge as will not interfere with the crossing of the old bridge by vehicles of the owner and his tenants until the new or reconstructed bridge and its approaches are available for use by the owner or his tenants:
- (3) The Conservators shall on the request in writing of the owner raise the level of the land of the owner forming the banks on the south side of the Upper Medway between Eldridge's Lock and the existing weir immediately above such lock so that such banks shall be eighteen inches above the intended water level at Eldridge's Lock as shown on the deposited plans and be so formed as to effectually prevent the escape of water over the lands of the owner:
- (4) The Conservators shall remove the existing weir on the south bank of the Upper Medway immediately above Child's Lock:
- (5) The Conservators shall remove the dam at present at the south end of the stream near Cannon Bridge and

construct a new dam at the north end of such stream A.D. 1911.
the top of such new dam to be two inches lower
than the top of the existing weir in the town stream:

- (6) The works to be executed by the Conservators for the protection of the owner as in this section provided shall be executed and carried out to the reasonable approval of the owner:
- (7) Save as expressly provided by this Act nothing herein contained shall be deemed to take away prejudice lessen or interfere with the existing rights or privileges of the owner in connection with the Postern Estate:
- (8) In the event of any dispute as to any matters referred to in this section the same shall in default of agreement be settled by an arbitrator to be appointed at the request of either party by the President of the Surveyors' Institute.

51. For the protection of Herbert James Symonds his heirs and assigns or other the owner or owners of the Town Mills in the parish of Tonbridge and certain lands situate between the same and the Upper Medway (in this section called the "owners") the following provisions shall unless the Conservators and the owners otherwise agree in writing apply and have effect (that is to say):—

For protection of owners of Town Mills Tonbridge.

Notwithstanding anything in this Act contained and without prejudice to any other right to compensation under the Lands Clauses Acts incorporated with this Act the Conservators shall make compensation to the owners for any loss or damage caused to them by anything done under the powers by this Act conferred upon or transferred to the Conservators as if the same had been done under the Medway (Upper) Navigation Acts 1664 to 1892.

52.—(1) The Conservators may in connection with the works by this Act authorised and with any works under the provisions of the section of this Act of which the marginal note is "Power to reconstruct &c. locks &c." divert the existing towpath within the limits of deviation of lands to be acquired for and in connection with any such works shown on the deposited plans.

Power to divert tow-path.

(2) All public rights (if any) of way or passage over or along the portion of the existing towpath for which the new

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A.D. 1911. portion of towpath will be substituted shall from and after the completion and opening for use as a towpath of such new portion as aforesaid be absolutely extinguished.

Raising &c.
of bridges.

53. Subject to the provisions of this Act the Conservators may raise the bridges over the Upper Medway hereinafter described to any extent not exceeding five feet and may in connection therewith alter the approaches to such bridges and the gradients thereof and may widen strengthen deepen or otherwise alter and improve the piers arches or other supports of such bridges and the foundations thereof and alter all sewers drains gas and water and other pipes The bridges hereinbefore referred to are as follows :—

Barming Bridge situate partly in the parish of East Barming in the rural district of Maidstone and partly in the parishes of East Farleigh and West Farleigh in the rural district of Maidstone :

Bow Bridge situate partly in the said parish of Nettlestead and partly in the said parishes of West Farleigh and Yalding :

The footbridge leading to the Anchor Inn situate in the said parish of Yalding :

The footbridge known as Stair's Bridge situate in the said parish of East Peckham :

The occupation bridge situate in the said parish of East Peckham 217 yards or thereabouts from New Lock at or near the said Stair's Bridge measured in a westerly and south-westerly direction along the banks of the Upper Medway :

The occupation bridge known as Lower Lake Bridge situate in the parish of Hadlow in the rural district of Tonbridge :

The occupation bridge known as Ford Green Bridge situate in the said parish of Hadlow :

Cannon Bridge situate in the said parish and urban district of Tonbridge.

The Conservators shall execute any work under this section according to such plans as the owner or authority having control of such bridge may approve and the Conservators shall conform to the reasonable requirements of such owner or authority and

any difference under this section between the Conservators and any such owner or authority shall be settled by arbitration under the Arbitration Act 1889. A.D. 1911.

The Conservators shall so far as may be necessary during the execution of any works under this section provide a temporary bridge or ferry sufficient for the traffic ordinarily using any bridge which may be altered or interfered with under the provisions of this Act.

54. Subject to the provisions of this Act and in addition to the other lands which the Conservators are by this Act authorised to acquire the Conservators may enter upon take use and hold for the purposes of and in connection with the reconstruction rebuilding or enlargement of the existing locks and other works and conveniences in connection therewith under the provisions of this Act and for the enlargement of weirs and for the general purposes of this Act the lands delineated on the deposited plans and described in the deposited books of reference relating thereto. Acquisition of lands for locks &c.

55. If the works hereinbefore described are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Conservators for making and completing the same or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as is then completed. Period for completion of works under Part IV. of Act.

56. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated. Protection of gas and water mains of local authorities.

57. The Conservators may erect and maintain fences along and gates across the towpaths made by or vested in them by this Act and may enter into and carry into effect agreements with the owners or lessees of lands adjoining such towpaths as to the maintenance by the Conservators of any such gates Provided always that nothing in this Act contained shall render the Fences and gates for towpaths.

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Conservancy Act, 1911.

A.D. 1911. Conservators liable for the payment of any rent or other payment in respect of such towpaths.

Conservators' powers as to dredging ballasting &c.

58. The Conservators may after the date of transfer from time to time do all or any of the things following (namely):—

- (A) Dredge cleanse and scour the Upper Medway:
- (B) Alter deepen restrict enlarge widen diminish lengthen shorten straighten and improve the bed and channel of the Upper Medway:
- (C) Reduce or remove any shoals shelves banks or other accumulations in the Upper Medway:
- (D) Shorten any bend or remove any angle in the course of the Upper Medway and for such purpose enter into agreements with the owners of land adjoining or in or near to the Upper Medway for the purchase of land or otherwise to enable them to effect the same:
- (E) Abate or remove or cause to be abated or removed all impediments obstructions and annoyances and all nuisances and abuses whatsoever in the Upper Medway or on the banks thereof:
- (F) Dredge and raise from the Upper Medway gravel sand and other substances for the purposes of making altering repairing and maintaining the banks towing-paths and roads and straightening and improving the course of parts of the Upper Medway by filling up and raising creeks inlets and bends in and adjoining to the Upper Medway and constructing altering repairing and maintaining works executed or to be executed by or for them or belonging to them:
- (G) Carry away or deposit on the banks of the Upper Medway or on lands adjoining the same by agreement with the owner thereof any materials obtaining in dredging or otherwise deepening and improving the bed and channel of the Upper Medway doing as little damage as possible and making good and paying proper and fair compensation for any damage done and may carry away deposit sell or otherwise dispose of any gravel sand ballast and other substances raised by them under the powers conferred by this section and not required for the purpose for which the same was so raised.

59. Any person with and in accordance with the licence of the Conservators under the hand of the chairman of the Conservators or the secretary may dredge and raise gravel sand ballast and other substances from the bed of the Upper Medway but subject to the provisions of this Act it shall not be lawful for any person other than the Conservators their agents servants and workmen to dredge or raise any gravel sand ballast or other substance from the bed of the Upper Medway and if any person acts in contravention of this enactment he shall for every such offence be liable to a penalty not exceeding twenty pounds without prejudice to any other remedy or proceedings against him:

A.D. 1911.
Prohibition
against
dredging
without
licence of
Conserva-
tors.

Provided always that nothing in this section contained shall prejudice or affect the rights if any existing at the passing of this Act of any person to raise any gravel sand ballast or other substance from the said bed or in the exercise of the powers of this section injuriously affect any such rights without paying proper compensation to the owners thereof to be ascertained failing agreement in manner provided by the Lands Clauses Acts.

60. For the purposes of this Act the Conservators their officers agents servants and workmen may at all reasonable times enter on any lands in or near the Upper Medway in order to survey and take levels thereof and to probe or bore for ascertaining the nature of the soil and to set out the line of any work by this Act authorised to be executed by the Conservators and to inspect and examine into the condition of any work the Conservators first giving not less than three nor more than fourteen days' notice in writing to the occupier of such lands and causing as little inconvenience as may be in the exercise of the powers of this section and making compensation for any damage thereby occasioned.

Conservators
may enter on
lands to sur-
vey &c.

61. The powers of the Conservators for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for com-
pulsory pur-
chase of lands
by Conserva-
tors.

62. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Conservators shall make full compensation to all parties interested in respect of any such rights and such compensation:

As to private
rights of way
over lands
taken com-
pulsorily by
Conserva-
tors.

[Ch. xxiii.] *Upper Medway Navigation and [1 & 2 GEO. 5.]
Conservancy Act, 1911.*

A.D. 1911. shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to
Conservators
to purchase
lands by
agreement.

63. The Conservators may for the purposes of and subject to the provisions of this Act from time to time as they think fit purchase by agreement any lands not exceeding in the whole ten acres.

Power to
Conservators
to take ease-
ments &c.
by agree-
ment.

64. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Conservators any easement right or privilege (not being an easement right or privilege of water in which any party other than the parties to the agreement have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
sell &c. lands.

65. The Conservators may from time to time sell lease (on building or other leases) exchange or otherwise dispose of in such manner for such consideration and on such terms and conditions as they think fit and in case of sale either in consideration of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in any lands for the time being vested in them and in their judgment not required for the purposes of this Act and may sell exchange or dispose of any rents reserved on the sale exchange lease or disposition of such lands or any reversionary interest therein and may make execute and do any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Certain
powers of
leasing heads
of water.

66. The Conservators may from time to time for such rents or other payments and periods and on and subject to such covenants conditions and restrictions as they think proper lease or grant licences under the hand of the chairman of the Conservators or the secretary to use for purposes for which water power is suitable heads of water from the Upper Medway:

Provided that the powers of this section shall not be so exercised that any part of the Upper Medway or any part of

the River Medway under the jurisdiction of the lower company shall be thereby rendered less suitable for purposes of navigation whether for profit or pleasure or less suitable as a source of water supply to any person lawfully entitled to take water therefrom for purposes of supply or less suitable for the purpose of supplying water to any mill or other work whatsoever the owner or occupier whereof was at the passing of this Act and for the time being shall be lawfully entitled to such supply: A.D. 1911.

Provided also that if the power given by this section is exercised and the lower company shall be advised by their engineer that their navigation is injured thereby the Conservators shall at once cease supplying any such persons as are mentioned in this section with any water until the consent of the lower company is given such consent not to be unreasonably withheld. If any difference under this section shall arise between the Conservators and the lower company such difference shall be referred to and determined by an engineer to be agreed on between the Conservators and the lower company or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party the costs of such reference to be borne and paid as may be directed by the said engineer.

67. The Conservators shall before drawing off the water from the pen above Farleigh Lock for any purpose whatsoever give to the lower company not less than thirty-six hours' notice in writing of their intention to do so. Drawing off water by Conservators and lower company.

The lower company shall before drawing off the water from their pen for any purpose whatsoever give to the Conservators not less than thirty-six hours' notice in writing of their intention to do so. The Conservators after receiving such notice from the lower company shall not draw out their water from the pen above Farleigh Lock until the lower company's pen shall have been again filled.

The Conservators will at all times when the pen of the lower company is required to be filled do all in their power to assist the lower company in the obtaining of water sufficient for the purpose of filling their pen.

The Conservators shall from time to time and at all times when by reason of flood water the height of the water in the pen below Tonbridge Lock is twelve inches above the normal

A.D. 1911. height there or when the height of the water in the pen above Teston Lock is eighteen inches above normal height there give notice thereof to the lock keeper of the lower company at Allington Lock by telephone or by telegram the lower company repaying to the Conservators the cost of such notice. The Conservators shall also give notice to the lower company when any sudden fall in the water takes place and the Conservators shall not draw the water out of their pens except under any urgent circumstances or during spring tides.

Conservators
to maintain
locks &c.

68. The Conservators shall subject to the provisions of this Act from time to time maintain and repair all locks dams and weirs for the time being vested in them until removed by lawful authority and the Conservators shall have free access by land and water to every such lock dam or weir for all necessary purposes.

Humane
apparatus
and assis-
tants may be
provided.

69. The Conservators may purchase provide and maintain all such apparatus as they think necessary for assisting in rescuing persons from drowning searching for drowned persons and restoring animation to persons apparently drowned and may employ and reward assistants therein in such manner as the Conservators think fit.

As to vessels
sunk or
stranded.

70. Whenever any vessel is sunk or stranded in the Upper Medway the Conservators shall cause such vessel to be raised or in case of sunken vessels which it is not reasonably practicable to remove to be blown up or otherwise destroyed so as to clear the Upper Medway therefrom and shall cause any such vessel and the furniture tackle and apparel thereof or any part thereof respectively which shall be raised or saved and also all or any part of the goods chattels and effects which may be raised or saved from any such vessel to be sold in such manner as they think fit first paying the custom duties and excise duties (if any) payable thereon and out of the proceeds of such sale shall reimburse themselves for the expenses incurred by them under this section and any expense incurred by them in watching or controlling such vessel and shall hold the surplus if any of such proceeds in trust for the persons entitled thereto and in case such proceeds shall be insufficient to reimburse the Conservators such expenses the deficiency shall be paid to the Conservators by the owner of such vessel upon demand and in default of payment may be recovered summarily as a civil debt:

Provided always that except in cases of emergency the Conservators shall give to the owner of any vessel twenty-four previous hours' notice in writing before blowing up or destroying any such vessel or obstruction under the powers in this section contained and the owner may on giving twelve hours' notice in writing after the expiration of the aforesaid notice be at liberty forthwith himself to remove blow up or destroy such vessel. A.D. 1911.

71. Subject to the provisions of this Act the Conservators may remove anything causing an obstruction in the Upper Medway or to the proper use of any towpath thereof and also any floating timber which impedes the navigation thereof and the expense of removing any such thing or floating timber shall be repaid to the Conservators by the owner of the same and the Conservators may detain such thing or floating timber for securing reimbursement to themselves for such expenses and on non-payment thereof on demand may sell such thing or floating timber and out of the proceeds reimburse themselves for such expenses rendering the surplus if any to the owner on demand and in case such proceeds shall be insufficient to reimburse the Conservators such expenses the deficiency shall be paid to the Conservators by such owner on demand and in default of payment may be recovered summarily as a civil debt. Obstruction may be removed.

72.—(1) Where any tree hedge or shrub overhangs the Upper Medway or any towpath of the Conservators so as to obstruct or interfere with the navigation of the Upper Medway or with the free passage along any such towpath the Conservators may serve a notice on the owner of the tree hedge or shrub or on the occupier of the land on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Conservators may themselves carry out the requisition of their notice doing no unnecessary damage. Trees or shrubs overhanging Upper Medway.

(2) Any person aggrieved by any requirement of the Conservators under this section may appeal to a court of summary jurisdiction within seven clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the Conservators and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Conservators under this section.

A.D. 1911.

Wharves
piers and
banks to be
repaired.

73. If any wharf pier or artificial bank or any portion thereof respectively is out of repair or insecure so as to be dangerous to any person passing along the Upper Medway or to any vessel either moored alongside of or passing by the same or is in any manner injurious or likely to be injurious to the Upper Medway or to the free navigation thereof the Conservators may by notice in writing served upon the owner of such wharf pier or artificial bank require him within the period specified within the notice and hereinafter in this section referred to as "the prescribed period" to repair or remove the same so as to prevent any danger therefrom. If after service of the notice on any such owner he shall neglect to comply with the requirements thereof within the prescribed period the Conservators may cause such works as they think proper to be done for effecting such repair or removal and the expenses thereof shall be payable by such owner and may be recovered summarily as a civil debt.

Broken piles
&c. to be
removed.

74. The Conservators may from time to time remove any broken dangerous or useless piles or mooring chains and remove or shorten any waterways causeways stairs or other projections injurious to the navigation of the Upper Medway and any expenses incurred by the Conservators under this section may be recovered by them summarily as a civil debt from the owner or occupier of the premises so removed or shortened:

Provided always that before exercising the powers conferred upon them by this section the Conservators shall (except in cases of emergency) give three days' notice in writing to such owner or occupier of their intention so to do and such owner or occupier may within such period give notice to the Conservators of his intention to execute the work referred to in the first-mentioned notice and shall thereupon execute such works forthwith otherwise the Conservators may exercise the powers conferred on them under this section.

Preventing
obstructions
of towpaths.

75. If any person who without lawful excuse (the proof whereof shall lie upon him) puts or causes or suffers to be upon any towpath of the Upper Medway anything which obstructs the passage of persons or horses along such path and does not remove the same after notice in writing from the Conservators so to do within a reasonable time to be specified in such notice the Conservators may remove such obstruction and any expenses incurred by the Conservators under this section may be recovered by them summarily as a civil debt.

76. It shall be lawful for the Conservators to grant to the owner or occupier of any land fronting and immediately adjoining the Upper Medway a licence to make any dock basin pier jetty wharf quay landing stage or wall or other work immediately in front of his land and into the body of the Upper Medway upon payment of such fair and reasonable consideration as is by this Act directed and under and subject to such other conditions and restrictions as the Conservators shall think fit to impose.

A.D. 1911.

Owners of land may embank &c. with licence of Conservators.

77. Except as in this Act provided it shall not be lawful for any person whomsoever to erect build or make any embankment or any erection building or work in or upon the bed or banks of the Upper Medway or to drive any piles therein without the permission of the Conservators :

No erection without permission of Conservators.

Provided that nothing in this section contained shall be deemed to affect any of the rights and powers of the Postmaster-General under the Telegraph Acts 1863 to 1909.

78. It shall be lawful for the Conservators upon the payment of a fair and reasonable consideration and subject to such rules regulations and restrictions as the Conservators may think proper to grant licences for the formation of such recesses lay-byes wharves docks and dwarf wharfing and the driving of such piles and other works as shall be required for the convenient use protection and improvement of premises and the placing and mooring of vessels in such line and at such levels as shall appear to them requisite for the above purposes without injurious interference with the navigation of the Upper Medway.

Conservators empowered to grant licences for formation of recesses or docks and dwarf wharfing.

79. It shall be lawful for the Conservators from time to time upon such terms and upon the payment of a fair and reasonable consideration (such consideration to be either a sum in gross or an annual rent or partly a sum in gross and partly an annual rent and when a sum in gross such sum to be paid at the time of granting the licence) and under and subject to such rules regulations and restrictions as they shall think fit to impose to licence the erection by the owners or occupiers of lands adjoining the Upper Medway at the places where the piers or landing-places hereinafter mentioned are to be erected at any convenient places of piers or landing-places of such form and construction as the Conservators shall consider most advantageous to the public and as causing the least obstruction to the navigation of the Upper Medway and also to license the driving of piles and the

Conservator may grant licences for erection of piers and landing-places.

[Ch. xxiii.] *Upper Medway Navigation and* [1 & 2 GEO. 5.]
Conservancy Act, 1911.

A.D. 1911. formation of dwarf wharfing ways and other conveniences to the adjoining premises.

Conservators
may erect
landing-
places.

80. Subject to the provisions of this Act it shall be lawful for the Conservators from time to time as they shall deem necessary for the convenience of the public to erect on land belonging to them or by agreement with the owners and occupiers of any other land at any convenient places landing-places of such form and construction as they shall deem most advantageous to the public and causing the least obstruction to the navigation of the Upper Medway and also from time to time to alter and vary the form and construction of such landing-places and also from time to time to shut up or take away and remove any such landing-places without being obliged to erect or provide any other landing-place in lieu of any so shut up removed or taken away.

Conservators
may let on
lease land-
ing-places.

81. It shall be lawful for the Conservators from time to time if they shall think fit so to do to let on lease to any person who may be willing to take the same for such time not exceeding three years and at such rent as may be mutually agreed upon any such landing-place and the right to receive such tolls as the Conservators shall have previously appointed to be taken at such pier or landing-place and every such lessee shall have the same rights powers and authorities for taking and receiving and recovering such tolls as are by this Act given to the Conservators or to any collector or other officer.

PART V.

WORKS BY KENT COUNTY COUNCIL.

Works by
Kent County
Council.

82. Subject to the provisions of this Act the county council may in the lines and according to the levels shown on the deposited plans and sections relating thereto make and maintain the improvement and diversion of Hampstead Lane in the parish of Yalding in the rural district of Maidstone in the county of Kent hereinafter described with all proper and necessary works junctions and approaches and they may enter upon take and use all or any of the lands delineated on the said plans and described in the deposited book of reference relating thereto (that is to say):—

Work No. 6 A widening and improvement of the said Hampstead Lane on the eastern side thereof commencing

at a point in the said lane 17 yards or thereabouts measured in a southerly direction from the northern end of the eastern bank of the Hampstead Canal and extending from that point for a distance of 405 yards or thereabouts measured in a southerly direction; A.D. 1911.

Work No. 7 An alteration and diversion of so much of the said Hampstead Lane as lies between the point of termination of the widening aforesaid and a point 38 yards or thereabouts measured in a south-easterly direction from the draw-bridge over the said canal:

And the county council may stop up and discontinue the portion of the said Hampstead Lane as is rendered unnecessary by the alteration and diversion by this section authorised Provided always that the county council shall enter upon take and use only so much of the lands numbered 13 on the deposited plans for the said parish of Yalding as are within the limits of Work No. 6.

83. The stopping up of a portion of the said Hampstead Lane under the provisions of this Act shall not take place until the new portion of the road is completed and open for public use Provided that the county council shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. Stopping up of part of Hampstead Lane.

84. In constructing the works authorised by this Part of this Act the county council may deviate from the lines thereof as shown on the deposited plans relating thereto to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards. Power to deviate in construction of works under Part V. of Act.

85. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the county council shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands As to private rights of way over lands taken compulsorily by county council.

[Ch. xxiii.] *Upper Medway Navigation and [1 & 2 GEO. 5.]
Conservancy Act, 1911.*

A.D. 1911. — Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to
county coun-
cil to take
easements
&c. by agree-
ment.

86. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the county council any easement right or privilege (not being an easement right or privilege of water in which any party other than the parties to the agreement have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Period for com-
pulsory pur-
chase of lands
by county
council.

87. The powers of the county council for the compulsory purchase of lands acquired under this Act shall cease after the expiration of three years from the passing of this Act.

Considera-
tion for ac-
quisition of
lands.

88. The consideration for the acquisition of any land by the county council under the powers of this Act may be either money or land acquired under the powers of this Act or a mixed consideration of money and land so acquired and on any exchange the county council may give or take any money for equality of exchange.

Transfer to
and vesting
in Conserva-
tors portion
of Hamp-
stead Lane.

89. The county council may and shall transfer and assign to the Conservators the land forming the site of the portion of the said Hampstead Lane stopped up under the powers of this Act and upon such transfer and assignment the Conservators may hold and use such land in accordance with the provisions of this Act.

Period for
completion
of works
under Part
V. of Act.

90. If the works authorised by this Part of this Act are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as is then completed.

Expenses of
this Part of
Act.

91. The expenses of the county council of executing the works authorised by this Part of this Act shall for all purposes be deemed to be incurred for general county purposes and such expenses may be defrayed by the county council accordingly.

PART VI.

A.D. 1911.

RATES TOLLS AND CHARGES.

92. The Order of 1894 shall continue to apply to the Upper Medway and the Conservators as if the Conservators had been named in that Order instead of the company and the Conservators may take demand and recover the rates tolls and charges authorised by the Order of 1894 accordingly.

Application
of Order of
1894.

93. The Conservators may from time to time demand and receive in respect of pleasure boats passing through by or over any lock or roller pass the tolls or annual payments appointed by the Conservators but not exceeding the amounts mentioned in the Sixth Schedule to this Act.

Lock tolls
for pleasure
boats.

94. It shall be lawful for the Conservators from time to time to erect and maintain such toll-house or other conveniences on or near each pier or landing-place erected by them as they shall think fit and tolls not exceeding the tolls following shall and may be demanded and taken at each such pier or landing-place so erected as aforesaid by such persons as the Conservators shall from time to time appoint before any vessel shall be permitted to make fast to or to moor or touch at any such pier or landing-place for the purpose of landing or embarking passengers or goods (that is to say):—

Conservators
may take
tolls from
vessels using
piers or land-
ing-places.

On vessels which shall embark any passengers or goods at or from any pier or landing-place for each and every time of calling at the same for every passage six pence such toll to be paid by the master of each vessel.

95. The Conservators may from time to time vary the tolls or any of them respectively in such manner as they think expedient by reducing or raising the same provided that the tolls do not in any case exceed the amounts authorised by this Act.

Variation of
tolls.

96. The Conservators subject to the provisions of this Act may from time to time enter into and carry into effect agreements with persons liable to pay rates tolls and charges or tolls with respect to the mode and times for the collection and payment thereof or the payment of annual or other periodical sums by way of composition therefor.

Power to
enter into
agreements
as to tolls.

[Ch. xxiii.] *Upper Medway Navigation and [1 & 2 GEO. 5.]
Conservancy Act, 1911.*

A.D. 1911.

Penalty on
forcing pas-
sage not
having paid
toll.

97. If any person wilfully and with intent to defraud eludes or evades or attempts to elude or evade the payment of any toll payable under this Act or if any person forcibly passes or attempts to pass any vessel through by or over any lock or rollers without having duly paid the full amount of any such toll payable in respect of such vessel or forcibly uses any pier or landing-place without having duly paid the toll such person shall for every such offence be liable to a penalty not exceeding five pounds over and above the full amount of such toll.

Tolls at locks
and roller
passes.

98. The tolls for vessels granted by this Act and by the Order of 1894 shall be paid before any vessel liable to toll is entitled to pass or repass through by or over any lock or roller passes and may be demanded and taken at the lock or roller pass by such persons as the Conservators from time to time appoint to be the toll collectors.

In case tolls
not paid ves-
sels may be
prevented
from using
pier or land-
ing-place.

99. It shall be lawful for the collector of tolls at any pier or landing-place to prevent any vessel the master of which shall neglect or refuse to pay the proper amount of toll payable by him for mooring or touching at such pier or landing-place from using such pier or landing-place.

Notice of
tolls to be
given.

100. Provided always that the tolls shall not be levied nor shall any increase be at any time made in the amount thereof unless four weeks' notice of such tolls or of such intended increase shall have been advertised in two newspapers published or circulated in the county. Provided also that a statement of the amount of toll so from time to time to be levied shall be placed in some conspicuous part of the office of the Conservators and on boards to be exhibited at the various locks.

Toll col-
lectors to
put up their
Christian
and surnames
painted on
boards in
front of toll-
houses.

101. Every collector of the aforesaid tolls shall place his Christian and surname painted on a board in white letters on a black ground in fair legible characters of such size as the Conservators shall direct in front of the toll-house where he shall be stationed to collect the said tolls immediately upon his coming on duty and shall continue the same so placed during the whole time he shall be upon duty. And if any collector of tolls shall not place such board as aforesaid in the manner and during the time aforesaid or shall knowingly demand or take a greater or less toll from any person than he shall be authorised to do by virtue of the powers of this Act or shall refuse to permit or suffer or shall in anywise hinder any person from

reading such Christian or surname or shall refuse to tell his Christian or surname to any person who shall demand the same upon having paid the said toll or shall give a false name upon such demand then and in every such case every such collector shall be liable on conviction to a penalty not exceeding ten pounds for every such offence. A.D. 1911.

102. It shall be lawful for the Conservators to sell and dispose of any toll-house to be erected by virtue of this Act when it shall be considered by the Conservators unnecessary for the purposes of this Act in the same manner and under the same regulations as are contained in the Lands Clauses Consolidation Act 1845 with respect to lands acquired by the promoters of the undertaking under the provisions of that or the special Act or any Act incorporated therewith but which shall not be required for the purposes thereof and for the purposes of this section this Act shall be deemed the special Act. Conservators may sell toll-houses &c. when not wanted.

103. It shall be lawful for the Conservators from time to time to lease or demise all or any of the tolls for any term of years not exceeding three years at any one time to take effect in possession and not in reversion for such rent payable at such times and under such covenants as they shall think fit which rent shall be applied for the purposes of this Act. Conservators empowered to lease tolls.

104. The Conservators shall from time to time cause to be painted on boards or printed or written on paper in large and legible characters and affixed and continued on some conspicuous part of every such pier or landing-place the amount of the tolls to be taken thereat under the authority of this Act and no toll shall be payable by or required of any person during such time as such board or paper shall not be continued to be affixed thereon Provided always that if any such board or paper shall be destroyed injured or obliterated such tolls shall continue payable during such time as may be reasonably required for the restoration or reparation of such board or paper in the same manner as if the same had continued affixed or in the state required by this Act. Amount of tolls to be fixed to every pier or landing-place.

105. Without prejudice to any existing right of His Majesty boats vessels and steam launches and all officers and persons in the service of the Crown or of any Government department when on duty shall at all times have free access to through and over and use of the locks roller passes piers and Exemption of His Majesty's vessels &c. from rates.

A.D. 1911. landing-places referred to in this Act and all goods and stores belonging to or for the service of His Majesty or of any Government department may be freely carried through or over any of the said locks and roller passes and landed or disembarked from the said piers or landing-places without being charged with any toll rate or duty Provided always that if any person claim and take the benefit of any such exemption as aforesaid without being entitled thereto he shall for every such offence be liable to a penalty not exceeding ten pounds.

PART VII.

FINANCE.

Power to
wardens and
assistants of
Rochester
Bridge to
contribute
not exceed-
ing £20,000.

106.—(1) Subject to the provisions of this section the bridge wardens shall and they are hereby authorised to contribute towards the cost of the works herein mentioned and authorised by this Act to be made and maintained by the Conservators a sum or sums of money equal to two-third parts of the actual cost of such works including all engineering and surveying and other incidental expenses but not exceeding in any event the sum of twenty thousand pounds in the whole and subject in all respects to the following conditions (that is to say):—

- (A) The bridge wardens shall not be liable to make any contribution towards the cost of the before-mentioned works until the plans sections specifications and other particulars of the same shall have been approved by an engineer whose appointment shall have been approved by the bridge wardens in writing under the hand of their clerk for the time being and until such engineer as aforesaid shall have certified to the bridge wardens that effectual provision has been made for the due completion of the said works:
- (B) Such engineer shall supervise the carrying out of the works and any sum of money to be contributed by the bridge wardens shall be paid only on a certificate to be signed by such engineer that the amount therein named has been properly expended and the works therein mentioned have been properly executed:
- (c) Any sum of money to be contributed by the bridge wardens shall not at any time exceed two-thirds of

the amount from time to time appearing in any such certificate and the remaining one-third of such amount shall be paid *pari passu* by the Conservators or the lower company : A.D. 1911.

- (D) The bridge wardens shall not be required to pay any sum in respect of any amount appearing in any such certificate as aforesaid until the expiration of a period of at least one month from the date of the receipt by them of such certificate :
- (E) All sums contributed by the bridge wardens shall be applied exclusively in or towards the cost of constructing the before-mentioned works including all engineering and surveying and other incidental expenses :
- (F) The receipt of the chairman and treasurer for the time being of the Conservators shall in every case be a sufficient discharge to the bridge wardens for the payment of any contribution made by them under the provisions of this section.

(2) The bridge wardens may with the consent and under the authority of the Charity Commissioners in addition to any existing powers for raising money on mortgage of their estates raise for the purposes of the aforesaid contribution any sum or sums not exceeding in the whole twenty thousand pounds by mortgage of their estates or any part or parts thereof.

107. As from the date of the passing of this Act the lower company shall and they are hereby authorised to contribute towards the cost of the works herein mentioned and authorised by this Act to be made and maintained by the Conservators including all engineering and surveying and the incidental expenses the sum of one thousand pounds and such sum shall be paid by the said company to the Conservators upon the completion of the works by this Act authorised and the re-opening of the Upper Medway to navigation and the receipt of the chairman and treasurer for the time being of the Conservators shall be a sufficient discharge to the said company for any payments made under the authority of this Act and the lower company may and they are hereby authorised to subscribe for and take any amount of B debenture stock not exceeding five hundred pounds of such stock The lower company may apply

Power to
Medway
(Lower)
Navigation
Company to
contribute.

[Ch. xxiii.] *Upper Medway Navigation and* [1 & 2 GEO. 5.]
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A.D. 1911. in or towards payment of their said contribution any funds and revenues or any moneys which they are already authorised to raise and which may not be required by them for the purposes of their undertaking Any question as to whether the said works have been completed or the Upper Medway has in fact been re-opened for navigation shall be proved by a certificate of the Board of Trade under the hand of an assistant secretary of that Board.

Stamp duty
in respect of
contributions
by bridge
wardens and
lower com-
pany.

108. The Conservators shall produce to the Commissioners of Inland Revenue a King's printer's copy of this Act stamped with duty at the rate of two shillings and sixpence for every one hundred pounds of the sums of twenty thousand pounds payable to the Conservators under the provisions of the section of this Act of which the marginal note is "Power to wardens and assistants of Rochester Bridge to contribute not exceeding £20,000" and one thousand pounds payable to the Conservators under the provisions of the section of this Act of which the marginal note is "Power to Medway (Lower) Navigation Company to contribute" and in default of such production within six months after the passing of this Act the duty with interest thereon at the rate of five per centum per annum shall become a debt from the Conservators to His Majesty.

Power to
Conservators
to borrow.

109.—(1) The Conservators may from time to time borrow at interest on mortgage of all or any of the rates, tolls and charges and tolls leviable and other income receivable by them under this Act and upon mortgage of their lands and other hereditaments any sum or sums of money required for the purposes hereinafter mentioned not exceeding the respective amounts following (that is to say):—

(A) For executing the works by this Act authorised and otherwise for executing the powers of this Act such moneys as they from time to time require not exceeding in the whole the sum of twenty-five thousand pounds;

(B) For the purchase money or any part thereof to be paid under this Act such sum as may be requisite for that purpose:

And of such sums as aforesaid the Conservators may borrow any sum or sums not exceeding twelve thousand pounds (hereinafter called "guaranteed loans") with a guarantee attached thereto

by the corporation the councils and the governors or any of them as in this Act provided and as to any such sums not raised as guaranteed loans the Conservators may borrow the same as ordinary loans (hereinafter called "ordinary loans"). A.D. 1911.

(2) The guaranteed loans may be borrowed and reborrowed for any terms not exceeding fifty years from the dates of the original borrowing of the same respectively and the ordinary loans may be borrowed and reborrowed as in this Act provided.

110. The mortgagees under this Act may enforce the payment of arrears of principal or interest or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds. Arrears may be enforced by appointment of a receiver.

111.—(1) Subject to the provisions of this Act the Conservators may from time to time for the purpose of raising any money which they are for the time being by this Act authorised to raise as guaranteed loans by resolution create and issue at such prices and times and on such terms and subject to such conditions as they may think fit (not being inconsistent with the provisions of this Act) redeemable A debenture stock and may attach to such stock a fixed rate of interest not exceeding four per centum per annum payable half-yearly in two equal portions. Provided that all A debenture stock at any time and from time to time so created shall be created on such terms and subject to such conditions as that the same shall subject to the provisions of this Act form one and the same class of stock bearing one and the same rate of interest and shall become redeemable after the expiration of one and the same period not exceeding fifty years from the first creation of any such stock. Provided that any part or parts of A debenture stock may be created with a guarantee attached thereto to be given as in this Act provided. Power to create debenture stock.

(2) Subject to the provisions of this Act the Conservators may from time to time for the purpose of raising any money which they are for the time being by this Act authorised to raise as ordinary loans by resolution create and issue at such prices and times and on such terms and subject to such con-

[Ch. xxiii.] *Upper Medway Navigation and Conservancy Act, 1911.* [1 & 2 GEO. 5.]

A.D. 1911. ditions as they may think fit (not being inconsistent with the provisions of this Act) redeemable B debenture stock and may attach to such stock a fixed rate of interest not exceeding four and a half per centum per annum payable half-yearly in two equal portions. Provided that all B debenture stock at any time and from time to time so created shall be created on such terms and subject to such conditions as that the same shall form one and the same class of stock bearing one and the same rate of interest and shall not be redeemable or redeemed until all guaranteed loans have been repaid and all A debenture stock has been redeemed or purchased by the Conservators.

Title of security for and redemption of debenture stock.

112.—(1) The A and B debenture stocks created and issued under this Act shall be called respectively Upper Medway Conservancy redeemable A debenture stock and Upper Medway Conservancy redeemable B debenture stock (in this Act respectively referred to as “A debenture stock” and “B debenture stock” and collectively referred to as “debenture stock”) and shall as regards the A debenture stock together with the interest thereon be a first charge on the rates tolls and charges and tolls and other revenue of the Conservators and as regards the B debenture stock together with the interest thereon be a charge on the said rates tolls and charges tolls and other revenue ranking next after the A debenture stock.

(2) The debenture stock shall be redeemable by the Conservators at par that is to say at the rate of one hundred pounds sterling for every nominal amount of one hundred pounds stock issued at such time and in such manner as the Conservators by the resolution for the first creation of such stock may determine.

(3) Notice of the terms and conditions on and subject to which A or B debenture stock is created shall be endorsed on all certificates of A or B debenture stock as the case may be.

Restriction on exercise of borrowing powers after issue of debenture stock.

113. After any moneys have been raised by the Conservators by the issue of debenture stock the Conservators shall not issue any mortgages or other securities for the amounts so raised and shall not again borrow the same and to the extent of such amount as aforesaid the powers of the Conservators to borrow moneys shall be extinguished.

Nature and incidents of stock.

114. The debenture stock shall be and have all the incidents of personal estate.

115. Subject to the provisions of this Act no holder of any portion of A or B debenture stock respectively shall have any priority or preference by reason of the prior creation of such stock or otherwise. A.D. 1911.
No preference among holders.

116.—(1) The Conservators shall keep books in which shall be entered the names and addresses of holders from time to time of the debenture stock and the amounts held by them (in this Act referred to as “the stock register”). Register of stock.

(2) The stock register shall be *prima facie* evidence of any matter entered therein in accordance with this Act and of the title of the persons entered therein as holders of stock.

117.—(1) On demand of a holder of debenture stock the Conservators may if they think fit give to him a certificate of the proprietorship thereof under their common seal specifying the amount of debenture stock to which he is entitled (in this Act referred to as a “stock certificate”). Certificates of proprietorship of stock.

(2) A stock certificate may be in the Form A in the Seventh Schedule to this Act or to the like effect and shall be *prima facie* evidence of the title of the person therein named his executors administrators successors or assigns to the stock therein specified but the want of a stock certificate if such want be accounted for to the satisfaction of the Conservators shall not prevent the holder of stock from disposing of and transferring the same.

(3) If a stock certificate is worn out or damaged the Conservators on production thereof may cancel it and give a similar stock certificate to the party in whom the property in the stock certificate and in the stock therein specified is then vested.

(4) If a stock certificate is lost or destroyed the Conservators on proof thereof to their satisfaction may give a similar stock certificate to the party entitled to the stock certificate lost or destroyed.

(5) An entry of the issue of a stock certificate or substituted stock certificate as the case may be shall be made in the stock register.

118. Subject to the provisions of this Act every holder of debenture stock may sell and transfer all or any part of his stock Provided that debenture stock shall not be transferable except in amounts of one pound or of multiples of one pound. Power for stockholder to sell and transfer.

A.D. 1911.

Mode of
transfer of
stock.

119.—(1) The debenture stock shall be transferable only by deed which may be in the Form B in the Seventh Schedule to this Act or to the like effect.

(2) The deed of transfer shall relate only to the transfer and shall not contain any recital trust power or proviso whatsoever.

(3) The deed of transfer when duly executed shall be delivered to and kept by the Conservators and the Conservators shall enter a memorial thereof in a book to be called "the register of transfers" and shall endorse on the deed of transfer a notice of that entry.

(4) The Conservators shall not be bound to register any transfer except on production of the certificate relating to the stock to be transferred or on proof satisfactory to them or him of its absence.

(5) The Conservators shall on demand and on delivery up of the old stock certificate or on proof reasonably satisfactory to them of its absence deliver to the transferee a new stock certificate and in the case of any subdivision of stock deliver to the transferees new stock certificates for the sums of stock so transferred or shall at the option of the transferee (in any case where the stock is not subdivided) make an indorsement of the transfer on the old stock certificate which indorsement being signed by direction of the Conservators shall be equivalent to a new stock certificate.

(6) Until a deed of transfer has been so delivered to the Conservators they shall not be affected thereby and the purchaser of the stock shall not be entitled to receive any interest thereon.

Closing re-
gister for
transfers.

120.—(1) The Conservators may as regards either A or B debenture stock close the register of transfers on any day in the month next before that in which interest on that debenture stock is payable but so that the books be not at any time kept closed for more than fifteen days.

(2) The persons who on the day of such closing are inscribed as stockholders shall as between them and their transferees of debenture stock be entitled to the interest next payable thereon.

Transmis-
sion of de-
benture stock
on death
bankruptcy
&c.

121.—(1) The executors or administrators of a deceased holder of debenture stock shall be the only persons recognised by the Conservators as having any title to the stock of such holder or any interest therein.

(2) Any person becoming entitled to any stock in consequence of the death or bankruptcy of any holder or otherwise than by transfer of the stock shall produce such evidence of his title as may reasonably be required by the Conservators and the person so becoming entitled to any stock may transfer such stock to another person without being registered himself. A.D. 1911.

(3) The Conservators shall not be required to allow any executors or administrators to transfer any debenture stock until the probate of the will of or the letters of administration to the deceased has or have been left with the Conservators for registration and may require all the executors who have proved the will to join in the transfer.

(4) In case of any change of name of the holder of any stock such holder shall on furnishing evidence satisfactory to the Conservators of such change be entitled to have his new name entered in the stock register.

122. No notice of any trust express implied or constructive in respect of any debenture stock shall be entered in the stock register or in any other book kept by the Conservators or be receivable by the Conservators or affect the Conservators. Notice of trust not receivable.

123. The Conservators before allowing the receipt of any interest on any debenture stock may if the circumstances of the case appear to them to make it expedient require evidence of the title of any person claiming a right to receive the interest and that evidence shall be a statutory declaration of competent persons or of such other nature as the Conservators may require. Evidence of title.

124. Where debenture stock is standing in the name of an infant or person of unsound mind jointly with any person not under legal disability a letter of attorney for receipt of the interest on the stock shall be sufficient authority in that behalf if given under the hand and seal of the person not under disability attested by two or more credible witnesses but the Conservators before acting on the letter of attorney may if they think fit require proof to their satisfaction of the alleged infancy or unsoundness of mind by a statutory declaration of one or more competent witnesses. Interest where one joint holder is an infant &c.

125. A person taking or holding debenture stock shall not be concerned to inquire or to take notice whether the creation or issue thereof was or was not within any borrowing power of Protection of holders of debenture stock.

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A.D. 1911. the Conservators or otherwise in accordance with this Act or whether or not any meeting of the Conservators was properly constituted or convened or whether or not the proceedings at any meeting of the Conservators were legal or regular or to see to the application of any money raised by debenture stock or be answerable for any loss or misapplication thereof.

Saving for
power to
borrow
otherwise.

126. Nothing in this Act shall affect any power of the Conservators to raise otherwise than by debenture stock any money which they do not think fit to raise by debenture stock.

Sinking
fund.

127.—(1) The Conservators shall within five years after raising any moneys by guaranteed loans under this Act or the creation and issue of A debenture stock or within one year after the re-opening of the Upper Medway to navigation whichever shall be the earlier and thenceforth annually set apart as a sinking fund for the repayment of such loans or the purchase by them or redemption of such stock out of the rates tolls and charges and tolls and other revenue on the security of which such loans shall be raised or on which such stock shall be secured such equal yearly or half-yearly sums as will with accumulations by way of compound interest at a rate not exceeding three per centum per annum be sufficient to repay the guaranteed loans or redeem or purchase any A debenture stock at par within the period prescribed for the repayment of such loans or the redemption of such stock.

(2) The Conservators shall within one year after repaying the guaranteed loans or redeeming or purchasing A debenture stock and thenceforth annually set apart as a sinking fund for the repayment of ordinary loans or for the purchase or redemption of B debenture stock out of the rates tolls and charges and tolls and other revenue on the security of which such loans shall be raised or on which such stock shall be secured such equal yearly or half-yearly sums as shall with accumulations by way of compound interest at a rate not exceeding three per centum per annum and with any sum set apart as in this subsection provided be sufficient to pay such loans or redeem or purchase such stock within such period not exceeding fifty years as the Board of Trade may prescribe Provided that if in any year prior to the repayment of the guaranteed loans or the redemption of A debenture stock in accordance with the provisions of this Act there is any balance of revenue after meeting all the payments to be made under the

provisions of the section of this Act of which the marginal note is "Application of revenue" such balance or such part thereof as the Conservators think fit may be set apart and applied towards the sinking fund to be formed under the provisions of this subsection. A.D. 1911.

(3) All sums so set apart and the income thereof shall from time to time be invested in any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money or any security (not including annuity certificates or certificates payable to bearer) of any municipal corporation in Great Britain or of any other local authority within the meaning of section 34 of the Local Loans Act 1875 but the Conservators shall not invest any such money in any security of the Conservators.

(4) If and as often as the income derived from such investments is not equal to the income which would be derived therefrom at the rate per centum on which the equal yearly or half-yearly payments to the sinking fund are based any deficiency shall be made good out of the respective rates tolls charges and tolls or other income which are liable for the equal yearly or half-yearly payments and if and as often as the income derived from such investments is in excess of the income which would be derived therefrom at the rate per centum on which the equal yearly or half-yearly payments to the sinking fund are based any such excess may be applied as part of such equal yearly or half-yearly payments.

(5) The Conservators may from time to time apply the whole or any part of the sinking fund in or towards the repayment of the borrowed moneys or in the purchase by them or redemption of debenture stock for the repayment or purchase or redemption of which respectively such sinking fund was set apart in such order and manner as they deem proper Provided that in such case they shall pay into the sinking fund in each year or half-year afterwards and accumulate as hereinbefore prescribed until the whole of such borrowed moneys are repaid and of such debenture stock is purchased or redeemed a sum equal to the interest which would have been produced by the sinking fund or part thereof so applied at the rate per centum on which the sinking fund is based Provided also that whenever and so long as the securities in which the sinking fund is invested shall be not less in value at the market price of the day than

A.D. 1911. the principal moneys, and the nominal value of the debenture stock then outstanding and to be paid off purchased or redeemed by means of such fund the Conservators may in lieu of investing the said income apply the same in payment of interest on such principal moneys or debenture stock and may during such periods discontinue the payment to the sinking fund of the yearly or half-yearly sums required to be paid thereto.

(6) All debenture stock purchased or redeemed by the Conservators shall be cancelled and extinguished.

Saving for
power to
redeem by
agreement.

128. Nothing in this Act shall be construed to prevent the Conservators from redeeming any debenture stock at a price below par by agreement with the holder of such stock.

Annual re-
turn to Board
of Trade
with respect
to sinking
fund.

129. The secretary of the Conservators shall within thirty days after the expiration of each year during which any sum or sums is or are required to be paid as an instalment or instalments in respect of moneys borrowed on mortgage under this Act or to be set apart for a sinking fund under this Act transmit to the Board of Trade a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by them showing the amount which has been paid as an instalment or instalments or invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund and the interest thereof have been applied during the same period and the total amount remaining invested at the end of the year. In the event of any wilful default in making such return the secretary of the Conservators shall be liable to a penalty not exceeding twenty pounds which shall be recoverable summarily on the prosecution of the Board of Trade and not otherwise. If it appears to the Board of Trade by such return or otherwise that the Conservators have failed to pay any instalment or to set apart the sums required by this Act for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by this Act the Board of Trade may after hearing the Conservators (if desirous of being heard) and notwithstanding any proceeding for the recovery of any penalty or any other proceeding taken by that Board by order require the Conservators to make good the default within

a time therein limited and such order shall be enforceable by writ of mandamus to be obtained by the Board of Trade out of the High Court. A.D. 1911.

130. The moneys received from the bridge wardens and the lower company or either of them shall be appropriated to the purposes only for which the same are contributed and all moneys borrowed under the authority of this Act shall be appropriated to works on which capital may properly be expended and on the purchase money or consideration to be paid under the three agreements or any of them and on any other objects on which capital may properly be expended and for the purpose of paying interest during the construction of the works by this Act authorised not exceeding in the whole the sum of one thousand five hundred pounds. Application
of money
borrowed.

131. All moneys which may be received by the Conservators from rates tolls and charges and tolls rent and other income (and not properly applicable as capital) in any year shall be applied to the following purposes in the following order:— Application
of revenue.

- (1) The payment of the cost of maintaining working and managing the Upper Medway under this Act;
- (2) The payment of interest on guaranteed loans or A debenture stock;
- (3) The payment of interest on ordinary loans or B debenture stock;
- (4) The payment of any sums required under this Act to be paid into any sinking fund or otherwise towards the repayment of guaranteed loans or the redemption of A debenture stock;
- (5) The payment of any sums subject to the provisions of this Act to be paid into any sinking fund or otherwise towards the repayment of ordinary loans or the redemption of B debenture stock;
- (6) The payment into the reserve fund created under this Act of any sums which may under this Act be paid into that fund:

And the balance (if any) shall subject to the provisions of this Act be applicable to such purposes and in such manner for the benefit of the Upper Medway as the Conservators may determine:

A.D. 1911.

Provided that—

(A) The Conservators shall be entitled at the end of the year to carry forward such sum as may be reasonably necessary for meeting current expenses:

(B) The certificate of the auditor of the accounts of the Conservators shall be conclusive as to the amount available for any of the purposes aforesaid.

Reserve
fund.

132.—(1) The Conservators may if they think fit form a reserve fund and they may carry to such fund such part of the receipts on revenue account as is available for the purpose until the fund amounts to three thousand pounds and if the fund is subsequently reduced below that amount the Conservators shall carry to the fund so much of any such receipts as is required to restore the fund to that amount and is available for the purpose.

(2) The reserve fund so formed shall be applicable only towards meeting any deficiency on revenue account in any year. Provided that if it is proved to the satisfaction of the Board of Trade that it is expedient to apply any part of it to any other purpose the Board may under the hand of an assistant secretary authorise the Conservators to apply so much thereof as may be specified to such other purpose subject however to such conditions (if any) as may be specified.

(3) The sums paid into the reserve fund shall be invested in the like manner as sums paid to the sinking fund to be formed under the powers of this Part of this Act are authorised to be invested.

Accounts to
be yearly
laid before
Parliament.

133. There shall be yearly laid before both Houses of Parliament an account duly audited and certified of the receipts and application of the moneys which shall be received and applied by virtue of this Act and a copy of such account shall be sent to the county council the corporation and to the councils.

PART VIII.

GUARANTEES.

Guarantee
by corpora-
tion and
councils.

134.—(1) The corporation and the councils (each of which are in this Part of this Act included in the expression "the guaranteeing body") may by resolution passed before or after

the passing of this Act guarantee during the period fixed by this Act for the repayment of any loans the payment to the Conservators of such sums (hereinafter called "the required annual sum") as together with any revenue of the Conservators available for such purposes shall be sufficient to enable the Conservators (A) to pay interest on guaranteed loans or on A debenture stock at a rate not exceeding four pounds per centum per annum and (B) to make the sinking fund payments in respect of such guaranteed loans or A debenture stock required by this Act. A.D. 1911.

(2) The capital amount of guaranteed loans or A debenture stock which each guaranteeing body may so guarantee shall not exceed the sum mentioned in the second column of Parts I. and II. of the Eighth Schedule to this Act and the required annual sum shall be in proportion to such capital amount.

(3) If and so soon as any resolutions of the guaranteeing body granting any guarantee under the provisions of this section shall have been passed the guaranteeing body shall subject to the provisions of this Act in each year after the borrowing of the guaranteed loans or the issue of the A debenture stock subject to any such guarantee pay to the Conservators the required annual sum.

(4) The guaranteeing body may and shall charge assess and levy the required annual sum as part of and in all respects in the same way and with the same incidents and powers of recovery in the case of the corporation as the borough rate in the case of the Tonbridge Council as the general district rate and in the case of the rural councils as general expenses under the Public Health Act 1875 Provided that in the case of the rural councils such required annual sum shall be charged to the extent in the rural district and in the parishes or contributory places respectively as set out in the third fourth and fifth columns of Part II. of the Eighth Schedule to this Act.

(5) Notwithstanding anything in this Act contained the required annual sum shall not commence to be payable by the guaranteeing body until one year after the date of re-opening of the Upper Medway to navigation.

135.—(1) The Board of Education may at any time after the passing of this Act authorise the governors to guarantee by resolution or in such other manner and generally on such terms and conditions as the governors may deem expedient the repay- Power to governors to guarantee.

A.D. 1911. ment by the Conservators of any money or a part of any money borrowed on mortgage or otherwise or the redemption or purchase of A debenture stock but so that the total amount guaranteed by the governors shall not exceed the sum of one thousand pounds and any guarantee so authorised and given shall have effect accordingly in accordance with the provisions of this section and if at the end of the period fixed for the repayment of any loan or the purchase or redemption of any A debenture stock so guaranteed the Conservators are unable to repay that loan or any part thereof or purchase or redeem any such A debenture stock the governors shall subject to the provisions of this section repay the loan or purchase the A debenture stock so guaranteed.

(2) The governors may if they think fit by agreement with the holder or holders of A debenture stock or with the person or persons entitled to the repayment of any loan or loans guaranteed by the governors purchase the same from the holder or holders thereof or pay to such person or persons the amount due in respect of such loan or loans and take from such person or persons a transfer or transfers of the mortgage or mortgages or other security granted or given by the Conservators as security for such loan or loans less any amount that may be due thereon by way of interest.

(3) For the aforesaid purposes the governors may apply and use their funds and revenues and the Board of Education may authorise the governors to raise by mortgage or charge on the estates and property of the aforesaid foundation any moneys for the purposes aforesaid or any of them in such manner and upon such terms as the governors subject to the approval of the Board may deem expedient.

PART IX.

MISCELLANEOUS.

Conservators
may make
byelaws for
regulation of
river.

136. The Conservators subject to the provisions of this Act may from time to time make alter vary or repeal such byelaws as to them shall seem right and proper for all or any of the following purposes namely:—

For regulating the mode of conducting elections of elected Conservators under this Act:

For the regulation management and improvement of the Upper Medway and the navigation thereof:

For the government good order and regulation of vessels in or upon the Upper Medway and of persons navigating the same or using the towpaths locks piers landing places or any of the works connected therewith: A.D. 1911.

For regulating the mooring of vessels in the Upper Medway and as to offensive and dangerous cargoes:

For the regulation of the time place and mode of loading and unloading vessels and for the mooring of timber:

For regulating the passage of vessels through by or over locks or roller passes:

For regulating the extent manner and times of drawing down of water by owners or occupiers of mills for repair thereof or of any floodgates or waterworks belonging thereto or for cleansing mill streams:

For preserving notice boards and other works and things set up by the Conservators.

137. The Conservators shall cause copies of all byelaws made by them when the same are confirmed to be printed and such copies to be sold at a reasonable price to all persons desiring to buy the same. Byelaws to be printed and sold.

138. A copy of any byelaw made by the Conservators and confirmed purporting to be printed by direction of the Conservators and being authenticated by the common seal and the signature of the secretary shall for all purposes and to all intents be *primâ facie* evidence of such byelaw and of the due making and confirmation thereof without proof of such seal or signature. Proof of byelaws.

139. The Conservators may by any byelaws made by them impose on offenders against the same such reasonable penalties as they think fit not exceeding the sum of five pounds for each offence and in the case of a continuing offence a daily penalty not exceeding forty shillings but all such byelaws shall be so framed as to allow of the recovery of any sum less than the full amount of the penalty. Penalties may be imposed by byelaws.

140. All penalties fines and forfeitures imposed and recovered for offences against this Act or any Act wholly or partially incorporated herewith or any byelaw of the Conservators for the time being in force shall (except penalties fines and forfeitures imposed on or recovered from the Conservators) be Application of penalties.

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A.D. 1911. paid to the Conservators and be by them carried to their revenue account.

Conservators
may give
gratuities
and pay
superannua-
tion allow-
ances.

141. The Conservators may if they think fit in cases not within the Workmen's Compensation Act 1906 from time to time pay such annual or other sum of money as to them shall seem fit and reasonable to any officer or person in their employ in addition to the usual salary or wages of such officer or person for any extra or unusual service or as a compensation for any accident injury loss or damage which may happen to or be sustained by such officer or person and also to any officer or person in their employ by way of retiring or superannuation allowance for length of service and also to the widow or children of any officer or person in the employ of the Conservators or engaged in the execution of any work for them Provided always that the scale for retiring or superannuation allowances shall from time to time be approved by the Treasury.

Penalty on
throwing
ballast out of
vessels into
river.

142. No ballast shall be unladen or thrown from or out of any vessel into the river and the master of any vessel in the river who may throw or cause or suffer to be thrown any ballast out of any such vessel into the Upper Medway shall be liable on conviction to a penalty not exceeding ten pounds.

Recovery of
penalties.

143. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Service of
notice on
other per-
sons.

144. Any notice which the Conservators may be required or authorised to give to any person may be served on such person either personally or on his known agent or by sending the same through the post in a prepaid letter addressed to him or to his known agent by name at his last known place of abode or business or by delivering the same to some inmate at his last known or usual place of residence or business or in case the place of abode or business of the person to be served is unknown it shall be sufficient to affix the notice or a copy thereof on some conspicuous part of the premises (if any) to which the notice may relate.

Service by letter under this section shall be deemed to be effected on the day on which such letter would be delivered in the ordinary course of post and in proving such service it shall be sufficient to prove that the letter was properly addressed and put into the post. A.D. 1911.

145. If any alteration of telegraphic lines of the Postmaster-General is involved in the execution of any works under the provisions of this Act such alteration shall be made under and subject to the provisions of the Telegraph Act 1878. For protection of Postmaster-General.

146. Except as in this Act expressly provided nothing in this Act shall take away alter or abridge any right claim privilege franchise exemption or immunity to which any owner or occupier of any lands on the banks of the Upper Medway is now by law entitled but the same shall remain and continue in full force and effect as if this Act had not been passed. General saving of rights.

147. Nothing in this Act contained shall by implication or otherwise extend or be construed to extend to defeat lessen prejudice alter impair take away or affect any jurisdiction right privilege power or authority vested in or enjoyed by the lower company but all such powers rights privileges and authorities shall and may be held used exercised and enjoyed by the lower company in as full and ample a manner to all intents and purposes whatsoever as if this Act had not been passed. Saving rights of lower company.

148. Section 15 of the Water Supply to Kent County Gaol and Lunatic Asylum Act 1862 is as from the date of transfer hereby repealed but the county council shall if and so long as they take water from the Upper Medway under the provisions of the said Act pay the Conservators in respect thereof at the rate of twenty-five pounds per annum. Repeal of s. 15 of Water Supply to Kent County Gaol and Lunatic Asylum Act 1862.

149. The costs charges and expenses of and incidental to applying for and obtaining this Act including the preliminary costs charges and expenses of and incidental to the preparation of this Act and to the steps connected therewith and adopted and taken over by the county council by the resolution dated the sixteenth day of November one thousand nine hundred and ten as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the county council out of the county fund and revenues. Costs of Act.

A.D. 1911. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PART I.

Persons who
may claim to
be electors.

1. Every person and all corporations or companies who by a claim in writing in the Form A. in Part II. of this Schedule addressed to the Conservators and delivered at their office at the times and in the manner hereinafter provided has or have stated that he or they has or have during the year immediately preceding the date of such claim been and who has or have during the said year been in fact the importer or exporter or consignee of any goods of the weight of not less than one hundred tons carried or conveyed into or out of and loaded or unloaded within the Upper Medway in vessels and the owner or owners lessee or lessees of any barge or steam or other tug navigating the Upper Medway shall be entitled to be placed on the register of electors.

Regulations
as to register
of electors.

2. The following regulations shall be made with respect to the register of electors (that is to say):—

The Conservators shall give notice of their intention to cause a register to be made up and kept by an advertisement inserted in each of two successive weeks in some newspaper or newspapers published in the county and the last of such advertisements shall be published not less than seven days before the first day of January one thousand nine hundred and thirteen. And such advertisements shall state in what manner claims to be entitled to vote at the election of Conservators are to be made and within what time such claims are to be delivered at the office of the Conservators:

The Conservators shall on or before the first day of January in the year one thousand nine hundred and thirteen cause a register to be made and kept in which shall be entered the names addresses and qualifications of all persons corporations and companies who under the provisions hereinbefore contained shall have claimed to be entitled to vote in the election of Conservators under this Act. And the names and addresses of all persons corporations and companies who under the provisions hereinafter contained from time to time claim to be entitled to vote in the election of Conservators under this Act shall from time to time be placed upon the register so to be kept and such register shall be in the Form B. in Part III. of this Schedule or as near thereto as circumstances will admit. And such register shall be in

alphabetical order and shall be kept at the office of the Conservators and be open to public inspection at all times between the hours of ten a.m. and four p.m. of every working day and a copy thereof shall be fixed three weeks at the least before the day appointed for revising the same to the outer door of the office of the Conservators : A.D. 1911.

All claims to be entered on the register shall after the year one thousand nine hundred and thirteen be made in writing and be signed by the party making the same and in case of the claim of a corporate body under their common seal or under the hands of any of their directors or trustees and in case of any partnership the claim may be made in the name of one of the partners or in the separate names of the individuals forming such partnership and such claims shall be delivered at the office of the Conservators between the hours of ten a.m. and four p.m. on or before the first day of January in the year in which the claim is made :

In case any person not being resident in the United Kingdom be placed on the register of electors he may from time to time appoint an agent resident in the United Kingdom on whom all notices hereby required to be served on electors may be served and he shall give notice of such appointment to the Conservators The name and addresses of any agent so appointed shall be added on the list of electors to the name and address of the appointor :

Each partner in any firm (not being a joint stock company) shall be entitled to have his name placed on the register of electors if goods have under the provisions hereinbefore contained as to the qualification of electors been imported or exported by such firm into or out of the Upper Medway to the weight of five hundred tons.

3. On or before the first day of January one thousand nine hundred and thirteen and on or before the first day of January in every subsequent third year the Conservators shall appoint two of their number to be two of the revisors of the register of electors and such two Conservators before the first day of February in the year one thousand nine hundred and thirteen and on the same date in every subsequent third year unless such last-mentioned day happens to fall upon a Sunday in which case they shall upon the next ordinary working day appoint a third person being on the register for that year to be the third of the revisors and to be their chairman And in case such two Conservators shall fail to appoint such third revisor as aforesaid the chairman of the Conservators shall as soon as may be thereafter appoint some person qualified as aforesaid to be the third of the revisors and to be their chairman and if before the discharge of the duties by this Act imposed on such revisors any revisor so appointed shall die or become incapable or refuse

Revisors of
register of
electors to be
appointed.

[Ch. xxiii.] *Upper Medway Navigation and* [1 & 2 GEO. 5.]
Conservancy Act, 1911.

A.D. 1911. — or for seven days neglect to act as such revisor the persons or person by whom such revisor was appointed may appoint some other person to act in his place.

Revision of
register of
electors.

4. The revisors shall during the fourteen days next after the first day of March one thousand nine hundred and thirteen and after the same date in every subsequent third year revise at the Conservators' office the register of electors giving not less than three days' notice of their intention so to do by advertisement in one or more newspaper or newspapers published in the county.

Claims before
revisors.

5. At any such revision any importer exporter or consignee of any goods of a weight of not less than one hundred tons carried or conveyed into or out of the Upper Medway in vessels or the owner or owners or lessee or lessees of any steam or other tug or barge navigating the Upper Medway whose name is not inserted in the register of electors may in person or by his agent claim to have his name inserted therein.

Revision of
register.

6. The revisors may at any time and from time to time revise the register or any portion of the register giving not less than three days' notice of their intention to do so by advertisement in one or more newspapers published in the borough. Provided always that the revisors shall not so revise the register or any portion of the register except as hereinbefore provided except upon the receipt of a notice of objection to the name or names of any person inserted in the register such notice being given as hereinafter provided and shall then only revise so much of the register as is so objected to and provided that a copy of so much of the register as is so objected to shall be fixed at least three weeks before the day appointed for the revising of the same to the outer door of the office of the Conservators.

Objections to
persons
named as
electors.

7. The revisors shall hear all objections to the name or names of any person or persons inserted in the register of electors. Provided nevertheless that no person shall be entitled to object to the name of any person unless the objector shall himself be on the register of electors and no objection shall be heard except upon the appearance of the person whose name shall be objected to or if he shall not appear on due proof of the notice of objection having been served upon him. Such notice may be served personally or by leaving the same or by sending it through the post in a registered letter addressed to the person whose name shall be objected to at the place appearing on the register of electors as his place of abode at least ten days before the first day of March one thousand nine hundred and thirteen and ten days before the same date in every subsequent year.

Revisors may
summon
witnesses.

8. The revisors for the purpose of investigating the right of any person to vote may summon before them any witness or witnesses other than officers of His Majesty's Customs or other persons in the employ of

the Government and examine him or them on oath but no person shall be compelled to attend unless the reasonable charges for his attendance shall have been paid or tendered to him and no person shall be compelled in obedience to such summons to travel more than ten miles from his place of abode And any person who shall wilfully destroy any such summons or shall refuse to appear or answer any question put to him by the revisors for the purpose of the investigation of such right as aforesaid shall for such offence incur a penalty not exceeding five pounds.

A.D. 1911.

9. The revisors shall retain in any register of electors any name objected to if the objection is not established to their satisfaction and shall insert therein the name of any importer exporter or consignee of any goods of a weight of not less than one hundred tons carried or conveyed into or out of the Upper Medway in vessels and the name of the owner or owners lessee or lessees of any barge or steam or other tug navigating the Upper Medway shown to their satisfaction to be entitled to have his or their name inserted therein and shall strike out therefrom the name of every person firm or body corporate shown to their satisfaction to be no longer living or in existence or not to be entitled to have his or their name inserted therein.

Revisors to correct register of electors.

10. The decision of the revisors or a majority of them with respect to the register of electors shall be final and conclusive and the revisors shall forthwith after every revision sign their names at the foot of each list revised and deliver or forward the same to the secretary to the Conservators.

Revisors to sign register of electors.

11. No person shall be entitled to vote at the election of Conservators for any year unless his name shall appear on the register of electors then in force.

No person entitled to vote unless his name appears on register.

12. For the revision of the register of electors the Conservators shall produce at their office to the revisors such of the books and accounts of the Conservators and the written claims of exporters importers and consignees of goods as may be requisite to enable the revisors to revise the register and shall afford to them all reasonable and proper facilities for so doing.

Production to revisors of books &c.

13. Every register of electors purporting to be a register of electors revised and signed as by this Act provided shall be evidence of the same being a register of electors duly made revised and signed until the contrary is shown.

Evidence of revised register of electors.

14. Every revised register of electors shall be in force until the next revision and the persons firms and bodies corporate whose names appear in the revised register of electors from time to time in force shall be the electors entitled to vote at elections of Conservators under this Act.

Continuance of revised registers.

[Ch. xxiii.] *Upper Medway Navigation and [1 & 2 GEO. 5.]
Conservancy Act, 1911.*

- A.D. 1911. 15. Every revised register of electors shall forthwith after the revision be printed and published by the Conservators and a copy thereof shall be delivered to any person requiring it on payment of such sum as the Conservators shall think reasonable not exceeding sixpence for each copy.
- Revised register of electors to be printed and published.
- Meetings for election of elected Conservators. 16. On the third Wednesday in the month of May in the year one thousand nine hundred and thirteen, and of every subsequent third year and as soon as may be after any vacancy occurs in the office of elected Conservators the electors shall meet for the election of elected Conservators under this Act.
- Triennial retirement of elected Conservators. 17. On the first day of July in the year one thousand nine hundred and thirteen and on the same day in every subsequent third year the elected Conservators shall retire from office and the vacancies occasioned by every such retirement shall be supplied by the election of elected members in their stead as by this Act is provided but every such Conservator so retiring as aforesaid shall if otherwise duly qualified be eligible for re-election.
- Time of meeting for election. 18. Every such meeting shall be held at such time between the hours of ten a.m. and four p.m. and at such convenient place within the county as the Conservators may from time to time appoint and the secretary to the Conservators shall give not less than fourteen nor more than twenty-one days' notice by advertisement in one or more newspaper or newspapers published in the borough specifying the time place and object of such meeting.
- Procedure at meetings. 19. At every such meeting the electors present at the commencement of the meeting personally or by proxy appointed in writing shall forthwith appoint a chairman and the person so appointed shall receive the votes and shall act in all other respects as chairman of the meeting and the only business to be transacted or discussed at any such meeting shall be the election by the meeting of elected Conservators under this Act.
- Printed copies of register of electors to be conclusive. 20. The secretary to the Conservators shall cause to be supplied to each such meeting printed copies of the register of electors qualified to vote thereat with his signature appended thereto in writing or in print and such copies shall for all purposes of the meeting be conclusive evidence of the matters therein appearing.
- Qualification of elected Conservator. 21. No person shall be qualified to be an elected Conservator unless he shall either in his own name or as the nominee of some corporate body be or be entitled to be on the register of electors under the provisions and conditions herein contained and no member of the county council the corporation or the councils respectively shall be qualified to be an elected Conservator.

22. No person shall be eligible as an elected Conservator under this Act unless twelve clear days at least before the day of election he has been proposed by an elector and seconded by another elector and has intimated his willingness to be elected in writing signed by his proposer seconder and himself and delivered at or sent by registered letter to the office of the Conservators and four clear days at least before the day appointed for the election the Conservators shall publish the names of the candidates by advertisement in one or more newspaper or newspapers published in the county.

A.D. 1911.
Nomination
of candidates.

23. The persons to be from time to time elected as elected Conservators shall be the persons receiving the greatest number of votes of the electors present personally or by proxy at the meeting held for that purpose and such votes shall be given in writing under the hands of the respective electors or their proxies and in every case of an equality of votes the chairman of the meeting shall when requisite to decide the election have an additional or casting vote.

Election to be
by majority
of votes.

24. The appointment of a proxy shall be made by an instrument in writing (in the form given in Part IV. of this Schedule with such variations as circumstances require) signed by the appointor or if the appointor is a body corporate sealed by the common seal of the body corporate and in all cases attested by one witness at least. An instrument appointing a proxy shall not be used at any election unless it has been delivered at or sent by registered letter to the office of the Conservators not less than forty-eight hours before the time appointed for the election. An instrument appointing a proxy shall not be valid except for the election next after the date of its execution. No person shall be capable of acting as a proxy except an elector or in case of a firm or body corporate a member of such firm or a member or officer of such body corporate.

Regulations
respecting
proxies.

25. If any person shall personate any person entitled to vote in pursuance of this Act or falsely assume to act in the name or on behalf of any person so entitled to vote he shall for every such offence incur a penalty not exceeding twenty pounds.

Penalty for
personating
voter.

26. The result of every election shall immediately after the conclusion of the meeting at which it takes place be communicated in writing by the chairman of the meeting to the secretary to the Conservators.

Result of
election to be
communi-
cated to
secretary.

27. The expenses incurred by the Conservators or their secretary of and incident and preparatory to the obtaining and preparation of lists the publication of advertisements and the holding of elections directed by this Act or otherwise relative thereto shall be paid by the Conservators as part of their ordinary expenses.

Expenses of
elections.

Elected. Con-
servator
becoming a
member of
county coun-
cil or councils
to cease to
be a Con-
servator.

28. Any elected Conservator who after his election shall become a member of the county council the corporation or of any of the councils shall thereupon ipso facto cease to be a Conservator.

FORM A.

FORM A.

THE UPPER MEDWAY NAVIGATION AND CONSERVANCY
ACT 1911.

I

of

Dated this

day of

19 .

Address

Signed

Description

PART III.

A.D. 1911.

FORM B.

THE UPPER MEDWAY NAVIGATION AND CONSERVANCY
 ACT 1911.

REGISTER OF ELECTORS FOR THE UPPER MEDWAY NAVIGATION AND
 CONSERVANCY BOARD.

No.	Name of Elector.	Address.	Weight in Tons of Goods landed or shipped.	Name of Tug or Barge.	Dock Wharf or Place at or from which Goods have been landed or shipped.

PART IV.

FORM OF PROXY.

THE UPPER MEDWAY NAVIGATION AND CONSERVANCY
 ACT 1911.

I [A.B.] of []
 being entitled to vote at the election of an elected Conservator [or
 elected Conservators] at the election to be held on the day
 of 19 by this writing appoint [C.D.] of []
 to be my proxy to vote on my behalf at that election.

Signed [A.B.]

Witness—

[X.Y.]

A.D. 1911.

THE SECOND SCHEDULE.

Stamp.

Eighteen
Pounds.

AN AGREEMENT made the twenty-ninth day of March 1911 between THE MEDWAY (UPPER) NAVIGATION COMPANY (hereinafter called "the company") of the one part and OSMOND ELIM D'AVIGDOR GOLDSMID of Somerhill Tonbridge in the county of Kent (hereinafter called "the promoter") of the other part.

WHEREAS the company was incorporated under its present title under and by virtue of an Act of Parliament passed in the 13th year of King George III. intituled "An Act to revive explain and amend an Act made in the 16th and 17th years of His late Majesty King Charles II. intituled An Act for making the River Medway navigable in the counties of Kent and Surrey" and the Medway (Upper) Navigation Act 1892:

And whereas the capital of the company is £15,800 divided into 1,580 shares of £10 each of which 1,570 shares have been issued and fully paid up:

And whereas the company has created the mortgages charges and incumbrances specified in the schedule hereto upon its undertaking and property for the sums mentioned in such schedule and the same are now vested in the persons mentioned in the second column of the same schedule and there are other mortgages charges or incumbrances affecting the company's undertaking and property:

And whereas the promoter and certain other persons are about to apply to Parliament for an Act for the purpose of constituting a Board of Conservators to be called the Upper Medway Conservancy Board and authorising such Conservators to purchase and take over the assets and undertaking of the company:

And whereas the company has agreed subject to the sanction of Parliament to sell all its assets and undertaking to such Conservators upon the terms hereinafter mentioned:

Now it is hereby agreed and declared as follows:—

1. The Conservators shall as from the date of transfer to be fixed by Parliament undertake and take over all the debts specified in the schedule hereto.

2. In consideration of the payment by the Conservators to the company of the sum of £232 of which £75 is paid in respect of the unsecured debts and to be in satisfaction therefor and 2s. per £10

share is a payment in respect of the interest of the shareholders and in consideration of the undertaking by the Conservators of the debts and liabilities aforesaid the company shall sell and the Conservators shall purchase all and singular the assets and undertaking of the company subject nevertheless to the mortgages charges and incumbrances specified in the schedule hereto and to the principal moneys and interest secured thereby respectively. A.D. 1911.

3. The said sale and purchase shall be completed at such time not being more than two months after the sanction of Parliament shall have been obtained to such Act as aforesaid as Parliament shall prescribe and the company shall upon payment by the Conservators to the company of the said sum of £232 execute and do all deeds acts and things necessary for vesting the whole of the undertaking and assets of the company in the Conservators or, as they shall direct subject to such charges and incumbrances as aforesaid.

4. This agreement is conditional upon the said Bill becoming law in the next session of Parliament and is subject to such alterations as Parliament may think fit to make therein. Provided always that if Parliament shall make any material alterations in this agreement it shall be competent to any party hereto to withdraw therefrom. Provided also that if the said Bill shall not become law during the next Session of Parliament this agreement shall be void to all intents and purposes and none of the parties hereto shall have any claim against any other or others of the said parties hereto for costs or otherwise.

5. The said Bill shall contain a clause that this agreement is on the said Bill becoming an Act to become binding upon the Conservators constituted by such Act as if they had been named in this agreement in lieu of the promoter.

In witness whereof the company has caused its common seal to be hereunto affixed and the promoter has hereunto set his hand and seal the day and year first above written.

[Ch. xxiii.] *Upper Medway Navigation and [1 & 2 GEO. 5.]
Conservancy Act, 1911.*

A.D. 1911.

The SCHEDULE above referred to.

Date of Security.	Person in whom now vested.	Principal sum secured.
		£ s. d.
4th November 1904 -	William Alloway Perkins - - -	87 3 0
26th April 1905 -	Henry Charles King - - -	111 18 1
1st May 1905 - -	James Percy Knight and Rowland John Jefferis.	331 12 0
23rd May 1905 - -	Henry Charles King - - -	109 3 11
23rd May 1905 - -	John Abrey - - -	150 15 2
23rd May 1905 - -	Henry Letts - - -	75 6 6
8th June 1905 - -	Henry Charles King - - -	394 16 0
18th July 1905 - -	Ditto - - -	14 12 0
28th July 1905 - -	Ditto - - -	44 3 0
19th May 1905 - -	Lloyds Bank Ltd. Arthur Thomas Beeching Harold Anthony Beeching Horace Arthur Beeching and Walter Charles Beeching on judgment and elegit of the 19th May 1905 and 8th August 1905.	
8th August 1905 - -		
27th November 1905 -	Henry Charles King - - -	72 3 0
17th July 1906 - -	Ditto - - -	68 9 9
9th November 1906 -	Ditto - - -	59 1 10

Signed sealed and delivered
by the above-named Osmond
Elim d'Avigdor Goldsmid
in the presence of

O. E. D'AVIGDOR
GOLDSMID.

L.S.

E. A. BONNOR-MAURICE
46 Parliament Street S.W. Solicitor.

The common seal of the
Company was hereunto
affixed in the presence of

JAMES DONALDSON Chairman.
GEO. L. CARRICK Secretary.

L.S.

THE THIRD SCHEDULE.

A.D. 1911.

AN AGREEMENT made the thirtieth day of March 1911 between HENRY CHARLES KING of 17 Sergeants Inn Fleet Street in the City of London Solicitor of the first part WILLIAM ALLOWAY PERKINS of 110 Royal Parade Eastbourne in the county of Sussex of the second part JAMES PERCY KNIGHT and ROWLAND JOHN JEFFERIS both of 27 Great Tower Street in the City of London of the third part JOHN ABREY of The Glen Tonbridge in the county of Kent of the fourth part HENRY LETTS of Harcourt House Tetherdown Muswell Hill in the county of Middlesex Gentleman of the fifth part and OSMOND ELIM D'AVIGDOR GOLDSMID of Somerhill Tonbridge aforesaid (hereinafter called "the promoter") of the sixth part.

Stamp.

Ten
Shillings.

WHEREAS under and by virtue of an Act of Parliament passed in the year 1739 and an Act passed in the year 1892 the Medway (Upper) Navigation Company (hereinafter called "the company") is seised or possessed of the undertaking and property of the Upper Medway Navigation :

And whereas the company has created (inter alia) the mortgages or charges on its undertaking and property or some parts thereof the dates of which are specified in the First Second Third Fourth and Fifth Schedules hereto and such mortgages or charges are now respectively vested in the parties hereto of the first second third fourth and fifth parts respectively :

And whereas no interest has ever been paid on any of the said mortgages or charges from the date of their creation to the present time :

And whereas an action was recently brought by the said Henry Charles King against the company and the parties hereto respectively of the second third fourth and fifth parts and certain other defendants thereto who claimed to be incumbrancers of the company (the short title whereof is "King v. The Company 1909 K. No. 512") for the purpose of enforcing the said securities of the plaintiff in the said action and of having the priorities of the incumbrances of the said plaintiff and the several defendants (other than the company) determined and by the judgment in the said action dated the 27th day of October 1910 the validity of the said charges of the said Henry Charles King has been declared and certain other declarations have been made and inquiries have been directed :

[Ch. xxiii.] *Upper Medway Navigation and [1 & 2 GEO. 5.]
Conservancy Act, 1911.*

A.D. 1911.

And whereas in the said action a receiver has been appointed of the rents and profits of the surplus lands of the company and of the annual or other sums of money payable to the company for the user or taking of water or gravel from the river Medway and there is now in court to the credit of the said action a sum of money arising from the receipt of such rents profits and sums of money and the said receiver has in his hands certain other moneys all which moneys will or may be available for or towards the discharge of the said incumbrances or some of them:

And whereas the promoter is promoting a Bill in the now current session of Parliament intituled "A Bill to provide for the constitution " and incorporation of a Board of Conservators for the preservation " maintenance and improvement of the Upper Medway to acquire " the undertaking of the Medway (Upper) Navigation Company and " for other purposes":

And whereas the said Bill as deposited provides for the purchase by the Conservators to be constituted by the said Bill of the undertaking and property of the company for such price being a sum in gross and subject to such terms and conditions as may be agreed upon between the company and the Conservators or as failing such agreement shall be determined by an arbitrator to be appointed by the Board of Trade:

And whereas it is provided by the said Bill (section 104) that the Conservators may from time to time borrow at interest on mortgage of the rates tolls and charges and tolls leviable and other income receivable under this Act and by mortgage of their lands and other hereditaments any sum or sums required for (inter alia) the purchase money or any part thereof to be paid under the said Bill:

And whereas the parties hereto of the first five parts have agreed with the promoter on behalf of himself and the other promoters of the said Bill in the manner following:

Now it is hereby agreed by and between the parties hereto as follows (that is to say):—

1. Upon payment by the Conservators to be constituted by Parliament (hereinafter called "the Conservators") to the said Henry Charles King within two calendar months after the said Bill with and subject to such amendments and modifications as Parliament may think fit shall have become law of (A) £674 13s. 0d. and £199 14s. 7d. being the agreed amount of the principal moneys owing upon and secured by the securities specified respectively in the First and Second Parts of the First Schedule hereto subject as in clause 6 hereof provided (B) interest at the rate of 4 per centum on the said principal moneys calculated from the dates mentioned in the first column of the First

Schedule hereto to the date of payment and (c) the taxed costs of the said Henry Charles King of the said action incurred up to and including the date of these presents together with all such costs charges and expenses as shall have been properly incurred by the said Henry Charles King as mortgagee in relation to the said securities to be taxed in case the parties differ the said Henry Charles King will forthwith at the cost of the Conservators assign and transfer to the Conservators or as they shall direct the principal sums owing upon and secured by the securities specified in the First and Second Parts of the First Schedule hereto and all interest accrued and thenceforth to accrue thereon and all securities therefor or release and discharge the said securities.

A.D. 1911.

2. Upon payment by the Conservators to the said William Alloway Perkins within two calendar months after the said Bill with and subject to such amendments and modifications as aforesaid shall have become law of (A) £87 3s. 0d. being the agreed principal sum owing upon the security specified in the Second Schedule hereto subject as in clause 6 hereof provided (B) interest thereon at 4 per centum calculated from the date specified in the first column of the same schedule to the date of payment and (c) his taxed costs incurred up to and including the date of these presents of the said action together with all such costs charges and expenses as shall have been properly incurred by him as mortgagee in relation to his said security to be taxed in case the parties differ the said William Alloway Perkins will forthwith at the cost of the Conservators assign and transfer to the Conservators or as they shall direct the said principal sum of £87 3s. 0d. and all interest due and thenceforth to become due thereon and all securities for the same or release and discharge the same.

3. Upon payment by the Conservators to the said James Percy Knight and Rowland John Jefferis within two calendar months after the said Bill with and subject to such amendments and modifications as aforesaid shall have become law of (A) £331 12s. 0d. being the agreed principal sum owing upon the security specified in the Third Schedule hereto subject as in clause 6 hereof provided (B) interest thereon at 4 per centum calculated from the date specified in the first column of the same schedule to the date of payment and (c) their taxed costs of the said action incurred up to and including the date of these presents together with all such costs charges and expenses as shall have been properly incurred by them as mortgagees in relation to the said security to be taxed in case the parties differ the said James Percy Knight and Rowland John Jefferis will forthwith at the cost of the Conservators assign and transfer to the Conservators or as they shall direct the said principal sum of £331 12s. 0d. and all interest due and thenceforth to become due thereon and all securities for the same and release and discharge the same.

A.D. 1911.

4. Upon payment by the Conservators to the said John Abrey within two calendar months after the said Bill with and subject to such amendments and modifications as aforesaid shall have become law of (A) £150 15s. 2d. the principal sum owing upon the security specified in the Fourth Schedule hereto subject as in clause 6 hereof provided (B) interest thereon at 5 per centum calculated from the date specified in the first column of the same schedule to the date of payment and (C) his taxed costs of the said action incurred up to and including the date of these presents together with all such costs charges and expenses as shall have been properly incurred by him as mortgagee in relation to his said security to be taxed in case the parties differ the said John Abrey will forthwith at the cost of the Conservators assign and transfer to the Conservators or as they shall direct the said principal sum of £150 15s. 2d. and all interest due and thenceforth to become due thereon and all securities for the same or release and discharge the same.

5. Upon payment by the Conservators to the said Henry Letts within two calendar months after the said Bill with and subject to such amendments and modifications as aforesaid shall have become law of (A) £75 6s. 6d. being the agreed principal sum owing upon the security specified in the Fifth Schedule hereto subject as in clause 6 hereof provided (B) interest thereon at 4 per centum from the date specified in the first column of the same schedule to the date of payment and (C) his taxed costs of the said action incurred up to and including the date of these presents together with all such costs charges and expenses as shall have been properly incurred by him as mortgagee in relation to his said security to be taxed in case the parties differ the said Henry Letts will forthwith at the cost of the Conservators assign and transfer to the Conservators or as they shall direct the said principal sum of £75 6s. 6d. and all interest due and thenceforth to become due thereon and all securities for the same or release and discharge the same.

6. Provided always and it is hereby agreed and declared that upon payment to the several parties hereto respectively of the first five parts of the moneys payable to them respectively under this agreement the same parties will at the request and cost of the Conservators do or concur in all necessary or proper acts applications and things for enabling the Conservators to obtain payment of all moneys for the time being standing to the credit of the said action and all moneys for the time being in the hands of the said receiver which shall be liable to be applied in or towards the discharge of the said incumbrances respectively free from all claims of the said parties hereto of the first five parts or any of them and the parties hereto of the first second third fourth and fifth parts respectively will on such payments respectively as aforesaid assign to the Conservators all such interest as the same parties respectively may have in the moneys so in Court or in the hands of the receiver as aforesaid and

give to the Conservators all such authority as may be necessary for enabling the Conservators to use the names of the said parties respectively for the purpose of recovering all such moneys in the said action the Conservators agreeing to pay and discharge and to indemnify and keep indemnified the said parties respectively against all costs which may be incurred in or in respect of all proceedings taken by the Conservators in the said action. A.D. 1911.

7. The said Bill shall be amended by inserting such clauses as may be necessary for the following purposes viz. (A) to obtain the sanction of Parliament to this agreement and to an agreement for the sale by the company to the Conservators of its undertaking and property subject to the incumbrances subsisting thereon (B) to make those agreements binding on the Conservators and (c) to make the transfer of the undertaking and assets of the company take effect as from and not before the payment of all moneys payable under this agreement.

8. This agreement is conditional upon the said Bill so amended as aforesaid becoming law before the end of the next session of Parliament or any session to which the Bill may be carried over or the 1st November 1911 whichever of those events or dates shall first happen and is subject to such alterations as Parliament may think fit to make therein. Provided always that if Parliament shall make any material alterations in this agreement it shall be competent to any party hereto to withdraw therefrom. Provided also that if the said Bill shall not become law during such session or before such date as aforesaid this agreement shall be void to all intents and purposes and none of the parties hereto shall have any claim against any other or others of the said parties hereto for costs or otherwise.

9. Subject to the consent of Lloyds Bank Limited Arthur Thomas Beeching Harold Anthony Beeching Horace Arthur Beeching and Walter Charles Beeching being obtained no further steps or proceedings shall be taken in the said action and the now pending appeal from the judgment therein during the continuance of this agreement but nothing in these presents contained shall in anywise affect or prejudice any proceedings either under or on appeal from the said judgment in the said action in the event of the said Bill being rejected or not being passed before the end of such session as aforesaid or the 1st day of November 1911 whichever is the earlier but all such proceedings may as from whichever of those two dates shall be the earlier be had and continued as if these presents had not been executed.

10. The costs of all parties to this agreement other than the company of the negotiations for preparation approval and execution of this Agreement including the costs of the said Henry Charles King William

[Ch. xxiii.] *Upper Medway Navigation and [1 & 2 GEO. 5.]
Conservancy Act, 1911.*

A.D. 1911. Alloway Perkins James Percy Knight Rowland John Jefferis and John Abrey of their opposition to the Bill up to the date of these presents and of watching the Bill up to the passing thereof to see that all agreed amendments are duly inserted therein to be taxed in case the parties differ shall be borne and paid by the Conservators.

11. The said Bill shall contain a clause that this agreement is on the said Bill becoming an Act to become binding upon the Conservators constituted by such Act as if they had been named in this agreement in lieu of the party hereto of the sixth part and as if the Conservators had been incorporated before the execution of this agreement.

In witness whereof the said parties hereto have hereunto set their hands and seals the day and year first above written.

The SCHEDULES above referred to.

FIRST SCHEDULE.

FIRST PART.

Date of Security.	Original Mortgagees.	Person in whom now vested.	Principal Sum secured.	Rate of Interest.
26th April 1905	Abraham John Bruce Sherlock and Henry Charles King.	Henry Charles King.	£ s. d. 111 18 1	4 per cent.
23rd May 1905	Do.	Do.	109 3 11	4 per cent.
8th June 1905	Do.	Do.	394 16 0	4 per cent.
18th July 1905	Do.	Do.	14 12 0	4 per cent.
28th July 1905	Do.	Do.	44 3 0	4 per cent.

SECOND PART.

27th November 1905.	Do.	Do.	72 3 0	4 per cent.
17th July 1906	Do.	Do.	68 9 9	4 per cent.
9th November 1906.	Do.	Do.	59 1 10	4 per cent.

SECOND SCHEDULE.

A.D. 1911.

Date of Security.	Original Mortgagees.	Person in whom now vested.	Principal Sum secured.	Rate of Interest.
4th November 1904.	William Alloway Perkins.	William Alloway Perkins.	£ s. d. 87 3 0	4 per cent.

THIRD SCHEDULE.

Date of Security.	Original Mortgagees.	Person in whom now vested.	Principal Sum secured.	Rate of Interest.
1st May 1905 -	James Percy Knight and Rowland John Jefferis.	James Percy Knight and Rowland John Jefferis.	£ s. d. 331 12 0	4 per cent.

FOURTH SCHEDULE.

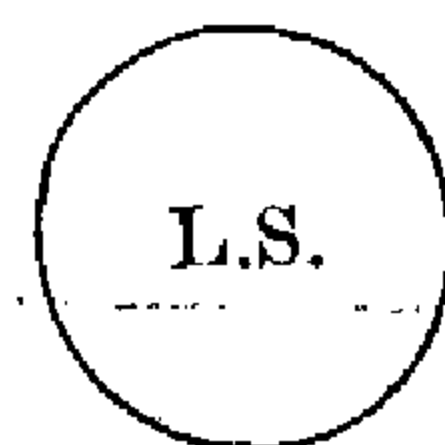
Date of Security.	Original Mortgagees.	Person in whom now vested.	Principal Sum secured.	Rate of Interest.
23rd May 1905 -	John Abrey	John Abrey	£ s. d. 150 15 2	5 per cent.

FIFTH SCHEDULE.

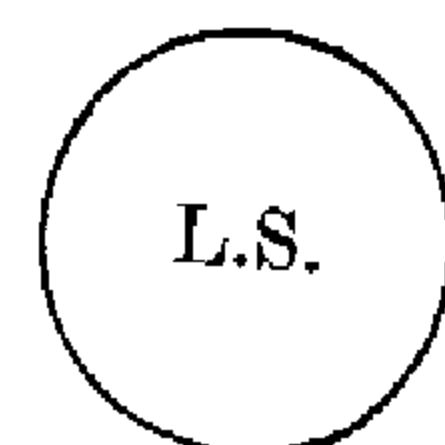
Date of Security.	Original Mortgagees.	Person in whom now vested.	Principal Sum secured.	Rate of Interest.
23rd May 1905 -	Henry Letts	Henry Letts	£ s. d. 75 6 6	4 per cent.

[Ch. xxiii.] *Upper Medway Navigation and* [1 & 2 GEO. 5.]
Conservancy Act, 1911.

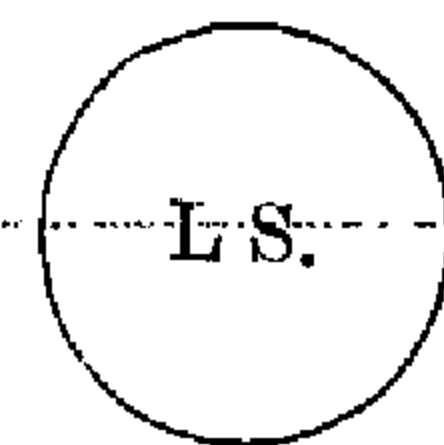
A.D. 1911. Signed sealed and delivered
 by the above-named Osmond } O. E. D'AVIGDOR
 Elim d'Avigdor Goldsmid } GOLDSMID.
 in the presence of
 STEPHEN G. HARVEY
 Somerhill Tonbridge
 Valet.



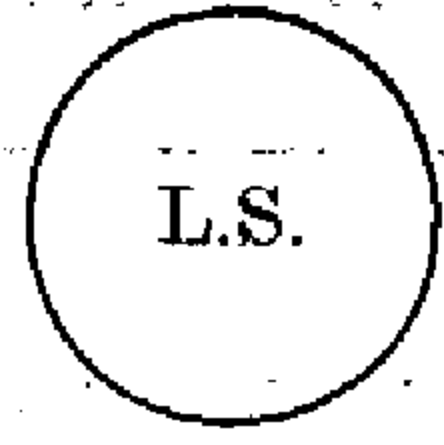
Signed sealed and delivered
 by the above-named Henry } H. C. KING.
 Charles King in the presence }
 of
 H. J. POTTS
 17 Sergeants Inn
 Fleet Street E.C.
 Clerk to Messrs. Tarry Sherlock & King
 Solicitors.



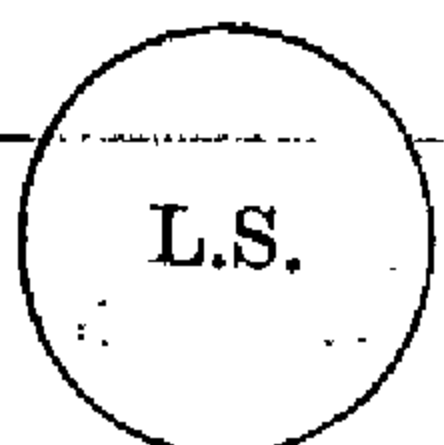
Signed sealed and delivered
 by the above-named William } W. A. PERKINS.
 Alloway Perkins in the }
 presence of
 MAY PERKINS
 10 Royal Parade Eastbourne
 Spinster.



Signed sealed and delivered
 by the above-named James } J. P. KNIGHT.
 Percy Knight in the presence }
 of
 R. F. BURTON
 27 Great Tower St. E.C.
 Cashier.



Signed sealed and delivered
 by the above-named Rowland } R. J. JEFFERIS.
 John Jefferis in the presence }
 of
 JAMES COLEGATE
 47 Boundary Road Chatham Kent
 Engineer's Clerk.



Signed sealed and delivered }
by the above-named John }
Abrey in the presence of }

JOHN ABREY.

L.S.

A.D. 1911.

PERCY M. HOLLOWAY
Cape Cottage
Gentleman.

Signed sealed and delivered }
by the above-named Henry }
Letts in the presence of }

H. LETTS.

L.S.

SYBIL LETTS
6 Firs Mansions
Firs Parade Muswell Hill
Spinster of no occupation.

THE FOURTH SCHEDULE.

AN AGREEMENT made the 14th day of March 1911 between LLOYDS BANK LIMITED ARTHUR THOMAS BEECHING of Tonbridge in the county of Kent Esquire HAROLD ANTHONY BEECHING of Tunbridge Wells in the county of Kent Esquire HORACE ARTHUR BEECHING of Tonbridge in the county of Kent Esquire and WALTER CHARLES BEECHING of Hartley Cranbrook in the county of Kent Esquire (hereinafter called "the mortgagees") of the one part and OSMOND ELIM D'AVIGDOR GOLDSMID of Somerhill Tonbridge in the county of Kent (hereinafter called "the promoter") of the other part.

Stamp.

Ten
Shillings.

WHEREAS the mortgagees and one Charles Edward Beeching in an action the short title whereof is "Lloyds' Bank Limited v. The Medway (Upper) Navigation Company 1903 L. No. 2,002" on the 19th day of May 1905 recovered judgment against the Medway (Upper) Navigation Company (hereinafter called "the company") for the sum of £2,585 13s. 7d. and costs to be taxed and such costs were subsequently taxed and allowed at the sum of £725 8s. 7d.:

And whereas by an Order dated the 4th day of August 1905 and made in an action in the Chancery Division the short title whereof is "Reeve v. The Company 1904 R. No. 1,060" leave was given to the

A.D. 1911. mortgagees to issue a writ of elegit against the company upon the said judgment:

And whereas on the 8th day of August 1905 a writ of elegit was duly issued against the company upon the said judgment and was on the same day duly registered in accordance with the statutes in that behalf and the lands and hereditaments of the company were subsequently extended under the said elegit:

And whereas the mortgagees are now entitled to the benefit of the said judgment and elegit and of the charge thereby created and the said two principal sums of £2,585 13s. 7d. and £725 8s. 7d. (together making the sum of £3,311 2s. 2d.) with interest thereon are now due and owing to the mortgagees upon the security of the said charge:

And whereas it is intended to apply to Parliament for an Act for the purpose of constituting Conservators of the Upper Medway Navigation and authorising the said Conservators to purchase and take over the undertaking and assets of the company:

And whereas the mortgagees have agreed with the promoter on behalf of himself and the other promoters of the said Bill in manner following:

Now it is hereby agreed by and between the parties hereto as follows (that is to say):—

1. Upon payment by the Conservators to be constituted by Parliament (hereinafter called "the Conservators") to the mortgagees within two calendar months after the said proposed Act shall have become law of the sum of £2,750 in full satisfaction and discharge of all principal money interest and costs owing to the mortgagees upon and secured by the said judgment and elegit and the charge created thereby the mortgagees will forthwith at the cost of the Conservators assign and transfer to the Conservators or as they shall direct the said judgment and elegit and the full benefit of the charge thereby created and so far as the mortgagees having any interest therein to moneys for the time being standing to credit of the said account and to moneys for the time being in the hands of the said receiver which shall be liable to be applied in or towards the discharge of the said mortgages shall belong to the Conservators free from all claims in respect thereof by the said mortgagees and they will on such payments respectively as aforesaid assign to the Conservators all such interest as the said mortgagees respectively may have in the moneys so in court or in the hands of the receiver as aforesaid and give to the Conservators all such authority as may be necessary for enabling the Conservators to use the names of the said mortgagees respectively for the purpose of recovering all such moneys in the said action the Conservators agreeing

to pay discharge and to indemnify and keep indemnified the said parties respectively against all costs which may be incurred in or in respect of all proceedings taken by the Conservators in the said action. A.D. 1911

2. The said Bill shall be amended by inserting such clauses as may be necessary for the following purposes (A) to obtain the sanction of Parliament to this agreement and to an agreement for the sale by the company to the Conservators of its undertaking and property subject to the incumbrances subsisting thereon (B) to make those agreements binding on the Conservators and (C) to make the transfer of the undertaking and assets of the company take effect as from and not before the payment of all moneys payable under this agreement.

3. This agreement is conditional upon the said Bill so amended as aforesaid becoming law before the end of next session of Parliament or any session to which the Bill may be carried over or the 1st of November 1911 whichever of those dates shall first happen and is subject to such alterations as Parliament may think fit to make therein. Provided always that if Parliament shall make any material alterations in this agreement it shall be competent to any party hereto to withdraw therefrom. Provided also that if the said Bill shall not become law during such session of Parliament on or before that date this agreement shall be void to all intents and purposes and in any event whether of the Bill becoming law or any party withdrawing from this agreement or the Bill not becoming law the promoter shall pay to the mortgagees the costs charges and expenses properly and reasonably incurred or paid by them in relation to or consequent upon or occasioned by this agreement not exceeding fifteen guineas and none of the parties hereto shall have any claim against any other or others of the said parties hereto for costs or otherwise except as aforesaid.

4. The mortgagees will use their best endeavours to stay all further steps or proceedings in the said action and the now pending appeal from the judgment therein during the continuance of this agreement but nothing in these presents contained shall in anywise affect or prejudice any proceedings either under or on appeal from the said judgment in the said action in the event of the said Bill being rejected or not being passed before the 1st November 1911 whichever is the earlier but all such proceedings may as from whichever of those two dates shall be the earlier be had and continued as if these presents had not been executed.

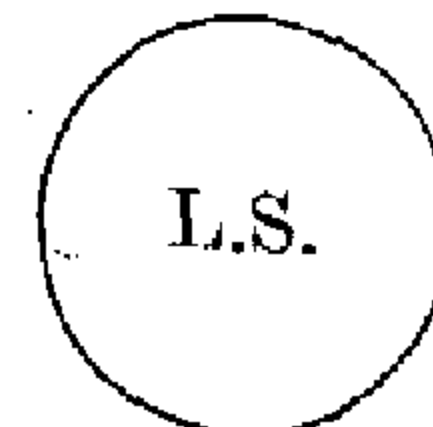
5. The said Bill shall contain a clause that this agreement is on the said Bill becoming an Act to become binding upon the Conservators constituted by such Act as if they had been named in this agreement in lieu of the promoter.

[Ch. xxiii.] *Upper Medway Navigation and* [1 & 2 GEO. 5.]
Conservancy Act, 1911.

A.D. 1911. In witness whereof Lloyds Bank Limited has caused its common seal to be hereunto affixed and the other parties hereto have hereunto set their hands and seals the day and year first above written.

Signed sealed and delivered
 by the above-named Osmond
 Elim d'Avigdor Goldsmid
 in the presence of

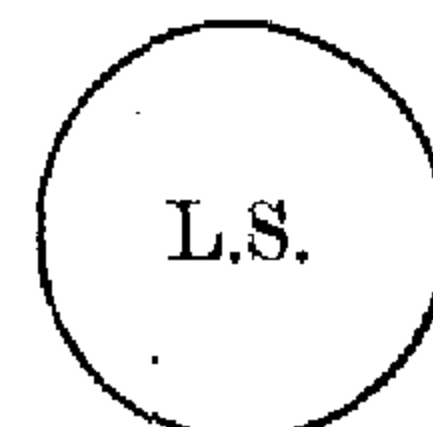
O. E. D'AVIGDOR
 GOLDSMID.



E. A. BONNOR-MAURICE
 46 Parliament Street S.W.
 Solicitor.

Given under the common seal
 of Lloyds Bank Limited

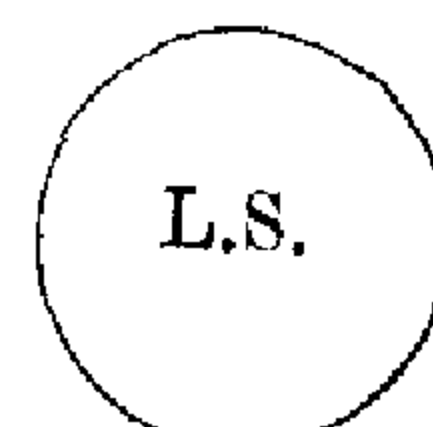
WILLIAM SMALL
 HENRY N. MIDDLETON } Directors.



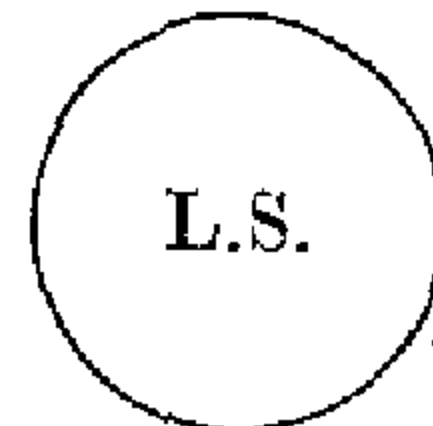
EDWIN J. HARRISON Secretary.

Signed sealed and delivered
 by the said Arthur Thomas
 Beeching by his attorney
 Horace Arthur Beeching
 Harold Beeching the said
 Horace Arthur Beeching
 and Walter Charles Beeching
 in the presence of

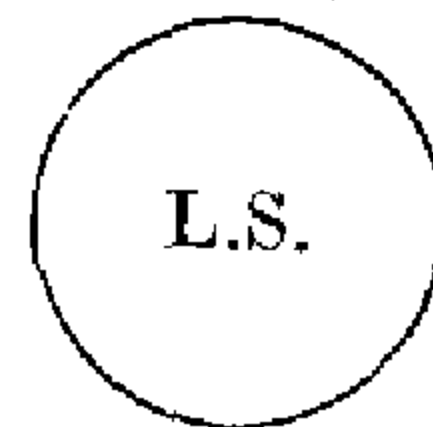
ARTHUR THOMAS
 BEECHING by HORACE
 A. BEECHING his attorney.



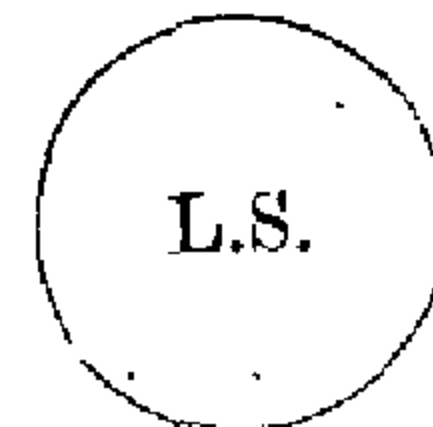
HAROLD A. BEECHING.



HORACE A. BEECHING.



WALTER C. BEECHING.



EDWIN REYNOLDS
 Clerk to Messrs. Gorham Warner & Son
 Solicitors
 Tonbridge.

THE FIFTH SCHEDULE.

A.D. 1911.

PART I.

Acts repealed from date of transfer excepting from such repeal the sections of such Acts set out in Part II. of this schedule.

Session and Chapter.	Short Title.
16 Charles II. c. 11 -	An Act for making the River of Medway navigable in the counties of Kent and Sussex.
13 Geo. II. c. xxvi. -	An Act to revive explain and amend an Act made in the sixteenth and seventeenth years of the reign of His late Majesty King Charles the Second intituled "An Act for making the River of Medway navigable in the Counties of Kent and Sussex."
55 & 56 Vict. c. lxxxvii.	Medway (Upper) Navigation Act 1892.

PART II.

Sections of the Acts set out in Part I. of this schedule exempted from repeal.

THE MEDWAY (UPPER) NAVIGATION ACT 1739 (13 GEO. II. C. XXVI.).

XXIII. And be it further enacted by the Authority aforesaid, That in consideration of the great Charges and Expenses the said Company of Proprietors, their Successors and Assigns, will be put unto in making the said River *Medway* and Streams navigable as aforesaid, and in repairing and keeping the same fit for such Navigation, it shall and may be lawful to and for the said Company of Proprietors, their Successors and Assigns, and they are hereby authorized and empowered, at all Times from and after the Twentieth Day of *May* One thousand seven hundred and forty, to keep Boats, Barges, Lighters, or any other Sort of Vessels, and by themselves, their Agents, Workmen, Servants, or any other Person or Persons, to employ and work the same for the Carriage of all Sorts of Goods, Wares, Merchandises, Commodities, and other Things whatsoever, as well upon such Part of the said River and Streams as shall be by them made navigable as on any other Part and Parts thereof which are now navigable and passable, and to take and receive to their own proper Use the Profits, Benefits, and Advantages thereof, and also to ask, demand, and receive, recover and take, of and from all and every Person or

Proprietors may employ Boats, &c. to carry Goods on the River;

A.D. 1911.

and to take
Toll of others
as herein
directed.

Persons who shall carry or convey, or cause to be carried and conveyed, any Goods, Wares, Merchandises, Commodities, or other Things whatsoever upon the said River and Streams between *Maidstone* and *Forest Row* aforesaid, or any Part thereof, (which all Person and Persons shall and may lawfully do,) such Rates and Duties for Lockage and Riverage as the said Company of Proprietors, their Successors or Assigns, shall think fit, not exceeding the Sum of Fourpence *per* Mile for every Ton Weight of Goods, Wares, Merchandises, Commodities, or other Things which shall be carried on any Part of the said River between *Maidstone* and *Brand Bridge* in the Parish of *Yalding*, either upwards or downwards, and not exceeding the Sum of Sixpence *per* Mile for every Ton Weight of Goods, Wares, Merchandises, Commodities, or other Things whatsoever which shall be so carried on any Part of the said River or Streams between *Brand Bridge* and *Forest Row* aforesaid, either upwards or downwards, and so in proportion for a greater or less Quantity.

Vessels to be
marked on
the outside.

XXX. And to the end, that as well the Names of the Owners, Masters, or Persons having the Command of any Boats, Barges, Lighters, or other Vessels navigating on the said River, as also the Quantity of Goods, Wares, Merchandises, and other Things therein contained, may be the better known, be it further enacted by the Authority aforesaid, That every such Owner, Master, or other Person as aforesaid shall cause his Name to be set in large White Capital Letters on each of the Outsides of every such Boat, Barge, Lighter, or other Vessel, higher than the same shall sink into the Water when full loaded, and also permit and suffer every such Boat, Barge, Lighter, or other Vessel to be measured at the Expense of the Proprietors of the said Navigation, by putting Weights into the same in the Presence of any Person or Persons appointed by the said Company of Proprietors for that Purpose, and shall also set Figures or Marks at the End of every such Boat, Barge, Lighter, or other Vessel, on the Outside thereof, showing how much or how far every Ton Weight of Loading will sink the same respectively in the Water, and shall permit the same to be remeasured as often as shall be required by the said Company of Proprietors, or such Person or Persons as shall be appointed by them for that Purpose; and every Owner, Master, or other Person as aforesaid who shall refuse or neglect to put his Name and such Marks of Tonnage on any Boat, Barge, Lighter, or other Vessel in manner as aforesaid, or shall alter, deface, erase, or destroy any Letter, Mark, or Figure describing or denoting as aforesaid, shall for every such Offence respectively forfeit and pay to the said Company of Proprietors, their Successors or Assigns, the Sum of Five Pounds.

The Naviga-
tion of the
River Med-
way not

XXXIII. And be it further enacted by the Authority aforesaid, That the said River *Medway* and Streams from *Maidstone* up to *Forest Row* aforesaid, or any Works Matters, or Things which shall be made,

erected, or used for making, keeping, and continuing the said River and Streams navigable, portable, and passable, shall not be under the Survey or Order of any Commission of Sewers nor subject thereunto, or to any Law or Statute made relating to Sewers, any Law or Statute to the contrary notwithstanding. A.D. 1911.
subject to the
Commis-
sioners for
Sewers.

XXXIV. Provided always, and it is hereby enacted and declared, Proviso.
 That the said Company of Proprietors of the Navigation of the River *Medway*, their Successors and Assigns, or any other Person or Persons who shall hereafter, at his, her, or their own proper Costs and Charges, make any other Stream or Streams falling into the said River navigable as aforesaid, are hereby exempted from the Payment of any Taxes, Rates, Assessments, or Impositions whatsoever for or in respect of the Navigation of the said River, or the Profits arising thereby, any Act or Acts of Parliament made or to be made, Custom or Usage, to the contrary notwithstanding.

THE MEDWAY (UPPER) NAVIGATION ACT 1892 (55 & 56 VICT. c. LXXXVII.).

1.—(1.) This Act may be cited as the *Medway (Upper) Navigation Act 1892* and shall come into operation on the third Monday after its passing. Short title
and com-
mencement
of Act.

(2.) This Act and the *Medway (Upper) Navigation Acts 1664 and 1739* may together be cited as the *Medway (Upper) Navigation Acts 1664 to 1892*.

18.—(1.) The Company may retain and hold any lands for the time being vested in them which in the opinion of the Company are or will eventually be required for the purposes of the undertaking and the Company may either let those lands at such rent and on such terms and conditions as they think fit or the Company may themselves cultivate the lands or use them for any purpose they think fit. Letting and
sale of lands.

(2.) The Company may sell any lands for the time being vested in them which in their opinion will not be required for the purposes of the undertaking at such price and on such terms and conditions as they think fit.

(3.) Any money received by the Company in respect of the sale letting cultivation or use of any lands under this section shall be applied by the Company if attributable to income as income and if attributable to capital shall be applied in repayment of any money borrowed under or legalized by this Act or for any other purpose for which capital is properly applicable and if not so applied or until so applied may be invested in any manner in which trustees are for the time being authorised by law to invest trust funds or in any other manner authorised by the Company at a general meeting.

[Ch. xxiii.] *Upper Medway Navigation and* [1 & 2 GEO. 5.]
Conservancy Act, 1911.

A.D. 1911.

Power to
carry mer-
chandise on
Thames and
Medway.

19. The power of the Company under section 23 of the Medway (Upper) Navigation Act 1739 to carry merchandise and other things and to take and receive the profits thereof shall apply to the carriage of merchandise and other things to from or on any part of the River Thames as well as to the carriage on the River Medway.

Power of
Company to
own and build
barges &c.

20. The Company may themselves own and themselves build purchase or hire such tugs barges boats or other vessels worked by steam or any other power as they may think convenient for the purpose of the carriage of merchandise or for any other purpose authorised by this Act or by the Medway (Upper) Navigation Acts 1664 and 1739.

Saving
pending
indictment.

21. Nothing in this Act shall in any way prejudice or affect the proceedings now pending in the matter of the indictment of Regina v. The Company of Proprietors of the Navigation of the River Medway and such proceedings shall be continued and determined as if this Act had not passed.

For protec-
tion of the
Brandbridge
Mills.

22. The Company during all such time as the proprietors of the Brandbridge Mills shall consider requisite shall so far as the traffic and the state of the river will permit regulate the water in and passing along the cut of the canal upon which the mills are situated so that there shall be an even flow of water along the same to the intent that the proprietors may be enabled to use the water wheel (other than the turbine wheel) of the mill without hindrance from any deficiency or excess of water by reason of the acts of the Company But except as otherwise expressly provided in any other section of this Act nothing in this section contained shall be deemed or construed to limit or affect any liability of the Company under the recited Acts.

Saving for
the Medway
Conservators.

23. Nothing contained in this Act shall extend or be construed to extend to prejudice or derogate from the estates rights interests privileges liberties or franchises of the Conservators of the River Medway or to prohibit the exercise of or defeat or alter or diminish any powers authority or jurisdiction which at the time of the passing of this Act the said Conservators did or might lawfully claim use or exercise.

Repeal.

24. The Medway (Upper) Navigation Acts 1664 and 1739 are respectively repealed to the extent specified in the schedule to this Act.

THE SIXTH SCHEDULE.

A.D. 1911.

TOLLS FOR PLEASURE BOATS.

DAILY TICKETS.

For every steam launch the sum of one shilling.

For every sculling boat pair-oared row-boat skiff randan canoe punt or dinghy the sum of three pence.

For every other kind of boat the sum of six pence.

The above charges to be for passing once through by or over each lock or roller or boat pass and returning on the same day.

ANNUAL PAYMENTS.

In lieu of the above tolls pleasure boats may be registered on payment to the Conservators of the under-mentioned sums and shall in consideration of such payment pass over the rollers free of any other charge from the 1st day of January to the 31st day of December in each year in which such payment is made:—

For each steam launch the sum of one pound:

For each sculling boat pair-oared row-boat skiff randan canoe punt or dinghy the sum of five shillings:

For every other kind of boat the sum of ten shillings.

THE SEVENTH SCHEDULE.

FORMS FOR USE IN CONNECTION WITH DEBENTURE STOCK.

FORM A.

UPPER MEDWAY CONSERVANCY REDEEMABLE A [or B] DEBENTURE STOCK
CERTIFICATE.

Number

£

This is to certify that
of

is the proprietor of

pounds of

£ per cent. Upper Medway Conservancy Redeemable A [or B]
Debenture Stock subject to the Acts of Parliament relating thereto.

Given under the common seal of the Upper Medway Navigation
and Conservancy Board this day of 19

[Ch. xxiii.] *Upper Medway Navigation and Conservancy Act, 1911.* [1 & 2 Geo. 5.]

A.D. 1911,

FORM B.

DEED OF TRANSFER OF UPPER MEDWAY CONSERVANCY REDEEMABLE A
[or B] DEBENTURE STOCK.

I of in consideration
of the sum of pounds
paid to me by of (hereinafter
called "the said transferee") do hereby transfer to the said transferee
the sum of pounds Upper Medway Conservancy
Redeemable A [or B] Debenture Stock standing [or part of the stock
standing] in my name in the register of such stock To hold to
the said transferee his executors administrators and assigns [or
successors and assigns] subject to the several conditions on which I
hold the same at the time of the execution hereof and I the said
transferee do hereby agree to take the said stock subject to the same
conditions:

As witness our hands and seals this day of 19

Witness to the signature }
of the said

Witness to the signature }
of the said

THE EIGHTH SCHEDULE.

PART I.

Guaranteeing Body.	Capital Amount which may be guaranteed.	Annual Payment which may be guaranteed.
Maidstone Corporation	£ 1,500	The proportionate part of such sum as may be required each year by the Conservators to enable them with the revenue available to pay the interest mentioned in subsection (1) of the section of this Act of which the marginal note is "Guarantee by corporation and councils."
Tonbridge Urban District Council.	5,000	Dirto.

1.	2.	3.	4.	5.
Guaranteeing Body.	Capital Amount which may be guaranteed.	Annual Amount which may be guaranteed.	Proportion to be charged over whole District and to the Common Fund.	Parish or contributory Place and Proportion to be charged thereon.
RURAL DISTRICT COUNCILS.	£			
Maidstone -	1,500	The proportionate part of such sum as may be required each year by the Conservators to enable them with the revenue available to pay the interest mentioned in sub- section (1) of the section of this Act of which the marginal note is "Guarantee " by corporation and " councils."	Five- ninths.	Four-ninths to be charged on the parishes of Barming West Barming East Farleigh West Farleigh Teston Nettle- stead and Yalding in proportion to the assess- able value of each parish.
Tonbridge -	1,500	Ditto - -	Five- ninths.	Four-ninths to be charged on the parishes of Ton- bridge Rural Capel and Hadlow in proportion to the assessable value of each parish.
Malling -	1,500	Ditto - -	Five- ninths.	Four-ninths to be charged on the parishes of East Peckham and Watering- bury in proportion to the assessable value of each parish.

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